

Suleman & Others vs . Union Of India & Others A/W Connected ... on 9 May, 2024

Bench: Tarlok Singh Chauhan, Sushil Kukreja

Suleman & others Vs. Union of India & others a/w connected matters.

.

CWP No. 2369 of 2018 a/w CWPIL No.269 of 2017, CWP Nos.1074 of 2019, 3334 of 2021, CWPIL Nos. 32, 42 & 56 of 2021, CWP No.3511 of 2022, CWPIL No.4 of 2022 & CWP No. 819 of 2024.

09.05.2023 Present: Mr. Deven Khanna, Advocate, for the petitioners in CWP No.2369 of 2018.

Ms. Vishali Lakhanpal, Advocate vice Mr.Parav Sharma, Advocate, for the petitioner in CWP No.1074 of 2019.

Mr. Suneet Goel, Advocate as Amicus Curiae, for the petitioner in CWPIL No.263 of 2017.

Mr. K.B. Khajuria, Advocate, for the petitioner in CWP No.3511 of 2022 and for respondent No.6/ Central Pollution Control Board in CWP No.2369 of 2018.

Mr. Saurav Rattan, Advocate, for the petitioner in CWP No.3334 of 2021.

of 2021.

Mr. Anup Rattan, Advocate General with Mr. Yash W. Chauhan, Senior Additional Advocate General, Mr. Ramakant Sharma, Mr. Navlesh Verma & Ms.Sharimila Patial, Additional Advocates General, for the respondents-State.

Mr. Balram Sharma, Deputy Solicitor General of India, for respondent- UOI and respondent No.4- Central Pollution Control Board in CWP No.3511 of 2022.

Mr. Neeraj Gupta, Senior Advocate with Mr.Vedant Ranta and Ms. Rinki Kashmiri, Advocates, for respondent No.8 in CWP No.2369/2018 and CWP No.1074/2019.

Mr. Tara Singh Chauhan and Mr.Maan Singh, Advocates for the respondent/HP Pollution Control Board in CWP No.2369/2018 and CWP No.1074/2019.

Mr. Abhishek, Advocate vice Ms. Garima Kuthiala, Advocate, for respondent No.10 in CWPIL No.269/ 2017.

Mr. V.B.Verma, Advocate, for respondent No.2 in CWPIl No.32/2021, for respondent No.1 in CWPIl No.42/2021 and for respondent No.3 in CWP .

No.3511/ 2022.

Mr. Sunil Mohan Goel, Advocate, for respondent No.5 in CWPIl No.4/2022.

Mr. Lovneesh Kanwar, Senior Advocate with Mr.Tek Chand, Advocate for respondent-M.C.Sarkaghat in CWP No.2369 of 2018.

Mr. Adarsh K. Vashishita, Advocate for M.Cs Chamba, Baddi, Nalagarh, Nagrota Bagwan, Jwalamukhi, Nurpur, Shahpur and Jawali. Mr. Rajesh Kashyap, Advocate, for MC Sunderngar. Mr. Mukul Sood, Advocate, for MCs Shimla and Dharamshala.

Mr. Ajay Chauhan, Advocate, for MC Palampur in CWP No.2369 of 2018.

Mr. Lalit K. Sharma, Advocate, for respondent No.4 in CWPIl No.32/2021.

Mr. H.S. Rangra, Advocate, for MC Mandi in CWP No.2369/2018.

On 23.03.2024, this Court passed the following order:-

"At the outset, we place on record our appreciation for the valuable assistance rendered by Shri Deven Khanna, Advocate.

2. We also place on record our appreciation for the pro- active role played by Shri Anil Joshi, I.F.S., Member Secretary, Himachal Pradesh State Pollution Control Board ("HPSPCB"), who after calling for the meetings of all the stakeholders on 29.02.2024 and 01.03.2024, has issued certain directions, which we deem it appropriate to accept and make them a part of the directions of the Court. Accordingly the following directions are issued:

(i) All the entities, who have not yet applied for the Extended Producer Responsibility ("EPR") registration shall submit the cases within one month from today and for any query, the Units shall approach the Regional Offices ("ROs") between 4.00-5.00 p.m.

(ii) The registered Producers, Importers/Brand Owners ("PIBOs") and Waste Management Agencies ("WMAs") are directed to explore the registered Plastic Waste Processors ("PWPs") in the State of Himachal Pradesh as the PWPs are working on very minimal capacity and it otherwise would be more economical to process the waste within the State rather than transporting the same to other State. The HPSPCB shall upload the details of the registered PWPs in State on its website, so that PIBOs can coordinate with PWPs in .

the State for their EPR fulfillment.

(iii) Recycler (s) shall submit the detail of the quantity of plastic waste processed to the HPSPCB on quarterly basis.

(iv) All the PIBOs shall submit the detail of the plastic waste generated from their product in the State of H.P. and the PIBOs are directed to collaborate with the Urban Local Bodies ("ULBs") and Gram Panchayats ("Gps") through Waste Management Agencies and work out the modalities of effective collection, segregation and processing of plastic waste through registered PWPs in the State. A detailed report in this regard shall be submitted to HPSPCB within one month.

(v) The WMAs are directed to submit the consolidated details such as ;

(a) List of PIBOs on behalf of whom they fulfill r EPR targets in Himachal Pradesh;

(b) Details of plastic waste collection in H.P. (the detail shall include the contact information, agreement with the ULBs/Vendor/Aggregator, storage facilities in HP)

(c) Details of the disposal of plastic waste. The details shall be provided for financial year 2022-23 and 2023-24 within 15 days.

(vi) All the registered PWPs are directed to tie up with ULBs/WMAs for the processing of post-consumer waste and start generating the EPR certificate on the Centralized Portal of the Central Pollution Control Board ("CPCB") and also ensure the submission of annual report on the portal.

(vii) All PIBOs working in the State of H.P. shall submit progress of EPR compliance through online-

portal on quarterly basis and not through offline mode.

(viii) Rural Development Department ("RDD") shall provide the details of the gram panchayats wherein the plastic management units are being established within 15 days.

(ix) All ULBs shall generate their login credentials on the Centralized portal of CPCB for EPR registration as has already been directed by this Court.

(x) All the ROs of the Pollution Control Board ("PCB") shall submit progress report on fortnightly basis after coordinating with all the stakeholders, with respect to registration and EPR compliance.

3. In addition to the above, we find that the brand-owners, who are operational in more than two States, are registered by CPCB on the centralized portal. During the registration and after obtaining registration, these brand-owners are required to submit sales detail of the commodity packed in plastic packing. The data of sales submitted is based on the GST invoice and the portal is linked with

the GST portal. However, we find that there is no bifurcation with respect to quantification of plastic packaging reaching to a specific State.

4. Further, the EPR certificates to be purchased by PIBOs from PWPs is a geo neutral concept. The PIBO operational in State of Maharashtra can purchase the EPR certificate from .

PWP in West Bengal. The State Board has raised the issue regarding quantification of the plastic packaging being introduced by various PIBOs in the State of Himachal Pradesh, however, the same has been denied as the EPR mandate is geo-neutral.

5. In such circumstances, we proceed to pass the following direction:

The CPCB is directed to ensure that brand-owners submit the details of the plastic packaging sold in the State of Himachal Pradesh so that the EPR fulfillment of those brand-owners can be ensured within the State of H.P. Solid Waste Management in Shimla:

Role of Municipal Corporation:

6. Our endeavour, at the first instance, is to make Shimla as the Model Town, so that, what is achieved in Shimla, could be replicated in other ULBs.

7. Section 44-H of the Himachal Pradesh Municipal Corporation Act, 1994, (for short, "Act"), provides for the duties and functions of the Ward Committees and one of such duties as prescribed in sub-section (c) is to provide assistance in solid waste management in the ward. Unfortunately, the Municipal Corporation Act was enacted in the year 1994 and even the rules, regulations and byelaws have been framed around the same time i.e. 1994. Whereas, the Solid Waste Management Rules have been enacted and have come into force only with effect from 01.04.2016 and despite this the provisions of the municipal laws, be it Municipal Corporation Act, Rules and Byelaws framed thereunder have not been amended so as to give municipal authorities the desired authority to enforce the provisions of the environmental laws including are not restricted to either "SWMR 2016" or Plastic Waste Management Rules, 2016, ("PWMR 2016"), Construction and Demolition Waste Management Rules, 2016, and other Rules and Act that have come into force after coming into force the Municipal Corporation Act and the Municipal Act, 1994.

8. Therefore, the Chief Secretary to the Government of Himachal Pradesh is directed to immediately take steps for amending the provisions of the Municipal Corporation Act, Rules, Regulations, Byelaws etc. in light of the aforesaid observations. However, till and so long the amendment is not carried out, the respondents including the Municipal Authorities and the Pollution Control Board are directed to enforce with all its rigours the provisions of Rule-4 of the "SWMR 2016" which reads as under:

"4. Duties of waste generators (1) Every waste generator shall,-

(a) segregate and store the waste generated by them in three separate streams namely bio-degradable, non bio-

degradable and domestic hazardous wastes in suitable bins and handover segregated wastes to authorised waste pickers or waste collectors as per the direction or notification by the local authorities from time to time;

(b) wrap securely the used sanitary waste like diapers, .

sanitary pads etc., in the pouches provided by the manufacturers or brand owners of these products or in a suitable wrapping material as instructed by the local authorities and shall place the same in the bin meant for dry waste or non-bio-degradable waste;

(c) store separately construction and demolition waste, as and when generated, in his own premises and shall dispose off as per the Construction and Demolition Waste Management Rules, 2016; and

(d) store horticulture waste and garden waste generated from his premises separately in his own premises and dispose of as per the directions of the local body from time to time.

(2) No waste generator shall throw, burn or bury the solid waste generated by him, on streets, open public spaces outside his premises or in the drain or water bodies.

(3) All waste generators shall pay such user fee for solid waste management, as specified in the bye-laws of the local bodies.

(4) No person shall organise an event or gathering of more than one hundred persons at any unlicensed place without intimating the local body, at least three working days in advance and such person or the organiser of such event shall ensure segregation of waste at source and handing over of segregated waste to waste collector or agency as specified by the local body.

(5) Every street vendor shall keep suitable containers for storage of waste generated during the course of his activity such as food waste, disposable plates, cups, cans, wrappers, coconut shells, leftover food, vegetables, fruits, etc., and shall deposit such waste at waste storage depot or container or vehicle as notified by the local body. (6) All resident welfare and market associations shall, within one year from the date of notification of these rules and in partnership with the local body ensure segregation of waste at source by the generators as prescribed in these rules, facilitate collection of segregated waste in separate streams, handover recyclable material to either the authorised waste pickers or the authorised recyclers. The bio-degradable waste shall be processed, treated and disposed off through composting or bio-methanation within the premises as far as possible. The residual waste shall be given to the waste collectors or agency as directed by the local body. (7) All gated communities and institutions with more than 5,000 sqm area shall, within one year from the date of notification of these rules and in partnership with the local body, ensure segregation of waste at source by the generators as prescribed in these rules, facilitate collection of segregated waste in separate streams, handover recyclable material to either the authorised waste

pickers or the authorized recyclers. The bio-degradable waste shall be processed, treated and disposed off through composting or bio-methanation within the premises as far as possible. The residual waste shall be given to the waste collectors or agency as directed by the local body.

8) All hotels and restaurants shall, within one year from the .

date of notification of these rules and in partnership with the local body ensure segregation of waste at source as prescribed in these rules, facilitate collection of segregated waste in separate streams, handover recyclable material to either the authorised waste pickers or the authorised recyclers.

The bio-degradable waste shall be processed, treated and disposed off through composting or bio-methanation within the premises as far as possible. The residual waste shall be given to the waste collectors or agency as directed by the local body."

9 We are informed at the Bar that a lot of waste is generated on occasions like marriage, birthday, retirement party etc., where the venue is other than a hotel and waste is shamelessly littered and scattered everywhere. However, we find that the Municipal Authorities are not so toothless so as to unable them to deal with such a situation because sub-rule 4 of Rule 4 clearly provides that no person can organise an event or gathering of more than one hundred persons at any unlicensed place without intimating the local body, at least three working days in advance and such person or the organiser of such event is required to ensure the the segregation of waste at source and handing over of segregated waste to waste collector agency as specified by the local bodies. If the person or organiser has in the past not complied with the provisions of sub-rule (4) of Rule 4, then we permit the Corporation to demand a pre-deposit of at least Rs.10,000/- from the person or the organiser where the gathering is more than 100 persons upto 200 persons and likewise thereafter demand an additional Rs.10,000/- per 100 persons and refund the money to the person or the organiser, as the case may be, but only after deducting the necessary amount spent on the segregation, handing over and transportation of the waste and after levy of an appropriate penalty. The Municipal Authorities may consider amending its rules on the aforesaid lines.

10. We find that there is no adequate training of the Councillors even though he/she is he President of the Ward Committee in terms of Section-44-C(3). Even the meetings of the Ward Committee, as envisaged under Section 44-D of the Act, to be conducted at least once in two months for discussing the developmental issues and plans of the ward concerned, are not held and, if held, then there is no discussion at all regarding providing of assistance in solid waste management in ward as statutorily provided for in Section 44-H (c). This is the salutary provision but has not been followed with all its rigours.

11. Therefore, in the facts and circumstances, Himachal Pradesh Institute of Public Administration, Fairlawns, Shimla, ("HIPA") is directed to conduct at least a week-long course of all the Councillors apprising them of not only the provisions as contained in Municipal Laws, but also the various provisions of the Environmental Laws.

12. What is more appalling is the fact that the Municipal Corporation though has 34 wards, but has only two Chief Sanitary Inspectors and four Sanitary Inspectors, meaning thereby, only six Inspectors. There are 38 Dafadars under .

the Inspectors. But, we are informed that even these Dafadars have been declared as dying cadre. Therefore, in these circumstances, we really wonder how Shimla Municipal Corporation, which is one of the oldest in the country, can function.

13. In the given facts and circumstances, the Chief Secretary to the Government of Himachal Pradesh is directed to convene a meeting of the Secretary, Urban Local Bodies ("ULBs") along with Municipal Commissioners of the Municipal Corporations and the Secretaries of the Municipal Councils and thereafter ensure that adequate manpower is provided to these Municipal Authorities for which the non-availability of finance will be no excuse. For, we need only to invite the golden words of Justice Krishna Iyer in the celebrated decision of Municipal Council, Ratlam vs. Vardhichand and others AIR 1980 SC 1622 when his Lordship observed that "where directive principles have found statutory expression in Do's and Don'ts, the court will not sit idly by and allow municipal government to become a statutory mockery. The law will relentlessly be enforced and the plea of poor finance will be poor alibi when people in misery cry for justice". His Lordship further observed that "public nuisance, because of pollutants being discharged by big factories to the detriment of the poorer sections, is a challenge to the social justice component of the rule of law. Likewise, the grievous failure of local authorities to provide the basic amenity of public convenience drives the miserable slum-dwellers to ease in the streets, on the sly for a time, and openly thereafter, because under nature's pressure, bashfulness becomes a luxury and dignity a difficult art. A responsible municipal council constituted for the precise purpose of preserving public health and providing better finances cannot run away from its principal duty by pleading financial inability. Decency and dignity are non-negotiable facets of human rights and are a first charge on local self-governing bodies".

Solid Waste Management:

14. It is brought to our notice by Shri Deven Khanna, learned counsel for the petitioners that land for SWM facility is not available in the following ULBs:

Sl. Name of ULBs Land for SWM Facility No. (Not Available) 1 MC Bilaspur (District BILASPUR) Not Available 2 MC Ghumarwin (District BILASPUR) Not Available 3 NP Chowri (District CHAMBA) Not Available 4 NP Shahpur (District KANGRA) Not Available 5 NP Bhunter (District KULLU) Not Available 6 NP Banjar (District KULLU) Not Available 7 NP Nirmand (District KULLU) Not Available 8 NP Rewalsar (District MANDI) Not Available 9 MC Rohroo (District SHIMLA) Not Available .

10 MC Thego (District SHIMLA) Not Available 11 NP Chopal (District SHIMLA) Not Available 12 NP Nerwa (District SHIMLA) Not Available 13 NP Chirgaon (District SHIMLA) Not Available 14 NP Rajgarh (District SIRMOUR) Not Available 15 NP Kandaghat (District SOLAN) Not Available 16 NP Amb (District UNA) Not Available

15. The State Government is directed to take immediate steps for making available these facilities and file a status report on the next date of hearing.

16. We are further informed that the land for SWM Facility is available in the following ULBs:

Sl. No.	Name of ULBs	Land for SWM Facility (Available)
1	MC Shri Naina Devi Ji (District BILASPUR)	Available
2	NP Talai (District BILASPUR)	Available
3	MC Chamba (District CHAMBA)	Available
4	MC Dalhousie (District CHAMBA)	Available
5	MC Hamirpur (District HAMIRPUR)	Available
6	MC Sujanpur (District HAMIRPUR)	Available
7	NP Nadaun (District HAMIRPUR)	Available
8	NP Bhota (District HAMIRPUR)	Available
9	Municipal Corporation Dharamsala (District KANGRA)	Available (1 No. own site and 1 No. Forest Land)
10	Municipal Corporation Palampur (District KANGRA)	Available
11	MC Kangra (District KANGRA)	Available
12	MC Nurpur (District KANGRA)	Available
13	MC Dehra (District KANGRA)	Available
14	MC Nagrota (District KANGRA)	Available
15	MC Jawalamukhi (District KANGRA)	Available
16	NP Baijnath (District KANGRA)	Available
17	NP Jawali (District KANGRA)	Available (Rented Land)
18	MC Kullu (District KULLU)	Available
19	MC Manali (District KULLU)	Available
20	Municipal Corporation Mandi (District MANDI)	Available
21	MC Sundernagar (District MANDI)	Available

22	MC Nerchowk (District MANDI)	Available
23	MC Jogindernagar (District MANDI)	Available
24	MC Sarkaghat (District MANDI)	Available
25	NP Karsog (District MANDI)	Available
26	M Corp Shimla	Available
27	MC Rampur (District SHIMLA)	Available
28	MC Narkanda (District SHIMLA)	Available
29	NP Kothkhai (District SHIMLA)	Available
30	NP Jubbal (District SHIMLA)	Available
31	NP Sunni (District SHIMLA)	Available
32	MC Nahan (District SIRMOUR)	Available
33	MC Paonta (District SIRMOUR)	Available
34	Municipal Corporation Solan (District SOLAN)	Available
35	MC Nalagarh (District SOLAN)	Available
36	MC Parwanoo (District SOLAN)	Available
37	MC Baddi (District SOLAN)	Available
38	NP Arki (District SOLAN)	Available
39	MC Una (District UNA)	Available
40	MC Santokhgarh (District UNA)	Available

41	MC Mehatpur (District UNA)	Available
42	NP Daulatpur (District UNA)	Available
43	NP Gagret (District UNA)	Available
44	NP Tahliwal (District UNA)	Available

17. It is informed that even where these sites are available, no steps, at the first instance, have been taken to prepare and create a green buffer zone and straightaway the solid waste is being dumped.

18. We are clearly of the view that if the site is unmanageable or has not been made available to the ULBs, then before dumping any solid waste on the said sites the same needs to be developed by creating a buffer zone. The Secretary (Urban Development) and the District Magistrate, Shimla, who have been entrusted with the duties under SWMR, 2016 shall file their personal affidavits regarding due compliance of Rules 11 and 12 on the next date of hearing.

19. Noticeably, the hilly areas have been treated separately, as is evident from Rule 20 of SWMR, 2016, which reads as under:

"20. Criteria and actions to be taken for solid waste management in hilly areas. - In the hilly areas, the duties and responsibilities of the local authorities shall be the same as mentioned in rule 15 with additional clauses as under:

(a) Construction of landfill on the hill shall be avoided. A transfer station at a suitable enclosed location shall be setup to collect residual waste from the processing facility and inert waste. A suitable .

land shall be identified in the plain areas down the hill within 25 kilometers for setting up sanitary landfill. The residual waste from the transfer station shall be disposed of at this sanitary landfill.

(b) In case of non-availability of such land, efforts shall be made to set up regional sanitary landfill for the inert and residual waste.

(c) Local body shall frame Bye-laws and prohibit citizen from littering wastes on the streets and give strict direction to the tourists not to dispose any waste such as paper, water bottles, liquor bottles, soft drink canes, tetra packs, any other plastic or paper waste on the streets or down the hills and instead direct to deposit such waste in the litter bins that shall be placed by the local body at all tourist destinations.

r (d) Local body shall arrange to convey the provisions of solid waste management under the bye-laws to all tourists visiting the hilly areas at the entry point in the town as well as through the hotels, guest houses or like where they stay and by putting suitable hoardings at tourist destinations.

(e) Local body may levy solid waste management charge from the tourist at the entry point to make the solid waste management services sustainable.

(f) The department in-charge of the allocation of land assignment shall identify and allot suitable space on the hills for setting up decentralised waste processing facilities. Local body shall set up such facilities. Step garden system may be adopted for optimum utilisation of hill space."

20. We would impress upon the State Government to empower the Local Bodies to levy solid waste management charges upon tourists at the entry point to make the solid waste management services sustainable.

21. The Government could take a cue from Bhutan where in September, 2022, it imposed a sustainable development fee of dollars 200 per day per visitor. However, fee was cut by half from September 2023 and fixed at dollar 100 per day per tourist and and in the case of children age 6 to 12 years, they were required to pay dollar 50 per child and there was no fee for children age 5 or under.

22. This Court had constituted a multi-members committee for improving solid waste management through multi- stakeholders engagement, addressing land allocation for SWM facilities, enhancing waste disposal infrastructure, implementing EPR and ensuring penalty provisions for violations.

23. We are pleased to note that the said Committee has made great strides and has been meeting frequently. It held meetings on 31.01.2024, 07.02.2024, 13.02.2024, 21.02.2024, 29.02.2024, 07.03.2024, 16.03.2024 and 19.03.2024. Certain meaningful suggestions have been made by the Committee which we adopt and the same shall be deemed to be the directions of this Court and are as follows:

(i) The ULBs are directed to deploy sufficient manpower .

for ensuring 100% segregation and collection and it should be ensured through outsource agencies as well.

(ii) Strict penalty will be imposed by the ULBs for violation of segregation at source and littering.

(iii) For the safe transportation of segregated waste compartmentalization of garbage collection vehicles shall be done by ULBs and it shall be ensured that only compartmentalization vehicles are used for transportation which direction shall be a mandatory condition for outsourced agencies deployed for this purpose. The funds, if any, required for compartmentalizing by ULBs shall be met out from the tied grants or out of their own resources. Wet Waste:

(i) Looking to the quantum of waste generation per day in ULBs which varies from 0.5 TPD to 100 TPD, the ULBs are directed to process the same through mechanized composting with latest equipments like Organic Waste Composters. On the similar lines, decentralized drum composting can be used for processing. Pit composting can also be considered but only in the lower parts of Himachal Pradesh where temperature generally remains high.

Dry Waste:

(i) As regards dry waste, the Urban Development Department has also entered into an agreement with cement plants for co-processing of dry waste with the condition that the cement plants may lift dry waste as a backload in their vehicles. But, the Committee found that the cement plants were not providing transportation facilities to lift dry waste as per the requirement of the ULBs. Therefore, the cement plants are directed to provide transport facilities for the dry waste under Corporate Social Responsibility.

(ii) All the ULBs, who are yet to register in centralized EPR portal of CPCB to earn credits in plastic waste management and CPCB/HPSPCB are directed to get themselves registered and thereafter provide all necessary support to ULBs to channelize funds from brand-

owners. Since, the financial position of the ULBs is weak, they are not in a position to enforce plastic buyback policy effectively. Therefore, we direct the Department of Environment, Science and Technology (DEST) to provide funds.

(iii) The SWM sites throughout the State shall be properly roof-topped, fenced and covered so as to ensure that no animals enter into the SWM facilities and further carry out plantation around the sites.

(iv) The State Government may consider tied grant for SWM under the State Finance Commission on the analogy of Centre Finance Commission to assist ULBs in effectively carrying out these activities.

(v) As observed above, the financial position of the ULBs is very lean and, therefore, they are unable to enforce provisions of law on account of lack of manpower and resources.

(vi) The Industry Department has executed an agreement .

between Baddi-Barotiwala-Nalagarh Development Authority ("BBNDA"), ULBs and M/s JBR Technologies for collection, transportation and processing of solid waste of MCs, Baddi, Parwanoo, Nalagarh and 42 Gram Panchayats, but despite various directions and efforts made by Urban Development Department, M/s JBR is not able to ensure proper collection and transportation of waste at the site which is creating huge problems for these ULBs. In such circumstances, we direct

the ULBs to consider installing their own waste processing facilities through various line departments like HPSPCB, Industry, Tourism, APMC etc. while giving NOCs for registration of new establishments and thereafter their renewal.

(vii) The Nalagarh and Parwanoo ULBs have their own capacity to manage the waste. Therefore, both the ULBs are directed to reconsider the agreement to manage their waste at their own level.

(viii) It was noticed by the Committee that there is a huge gap between the cost of collection, transportation and processing charges for MSW and user charges collection. As the user charges being collected are very less as compared to the processing cost in all the ULBs, in these circumstances, it is directed that all the ULBs will rationalize their user charges as per the expenditure being incurred by them on the solid waste by making necessary amendments in their byelaws. The ULBs are directed to ensure that the user charges being collected from the waste generators should at least be at par with collection and transportation charges.

(ix) The Committee noticed that it was very difficult for the ULBs to make themselves sustainable and recover processing cost. In these circumstances, it is directed that the user charges which are not being paid by the waste generators shall henceforth be treated as arrears.

(x) Arrears on account of door-to-door garbage collection/fines defaulted by the violators shall be included in the property tax of the next financial year as arrear so as to improve the financial condition of the ULBs.

(xi) The Advocates Committees which visited various ULBs in compliance to the orders passed by this Court have found serious issue regarding hot-spots in fringe areas of some of the Panchayats where garbage is being dumped on the boundaries of ULBs only because there was no proper system of garbage collection and disposal in semi urban/rural areas. In these circumstances, we direct that dedicated teams be constituted by all the five Municipal Corporations under the supervision of Ward Councillors to eliminate hot-spots and to avoid creation of new hot-spots. We further direct the Municipal Corporations to impose penalties on violators. The Rural Development Department is directed to take responsibility of collection and disposal of garbage in their respective areas and clear the hot-spots in the adjoining areas in a systematic manner.

(xii) The Committee noticed that as per the administrative structure of ULBs, all the major decisions are being taken in the house headed by President/Vice President. It was observed that in most of the ULBs, the elected bodies are .

either reluctant or opposing the issue pertaining to the measures required to be taken in SWM and only EO/Secretary of the concerned ULBs are held responsible for any lapse. In the given facts and circumstances, we deem it appropriate to direct that henceforth all the Committee Members including the entire elected bodies especially President, Vice President shall be responsible for the speedy and effective implementation of the environmental laws and they shall be accountable individually as well as jointly.

(xiii) The Committee noticed that there was lack of IEC activities to create awareness among masses or continuous IEC activities with a view to create awareness at the level of the ULBs. In this view of the matter, the IEC activities henceforth shall not only be undertaken by the ULBs but also by other stakeholders as safe environment is everyone's responsibility.

(xiv) For, IEC activities, NGOs/Yuvak Mandal/Self Help Groups/Beopar Mandals/NYKs/Mahila Mandals are ordered to be associated or Ward Sanitation Committees are ordered to be strengthened and activated by ULBs under the supervision of Ward Councillors.

(xv) The Committee noticed that land was not being provided or made available in the urban areas and such land was being identified in the rural areas where the Panchayats were not granting NOCs for transfer of land even if land was not adjoining to any human habitation. Therefore, in the given facts and circumstances, the Deputy Commissioner is directed to process the land cases in time bound manner of three months and in case NOC of transfer of land is not granted, then appropriate action under the Panchayati Raj Act be taken against such Pradhan. These directions will equally apply to the Forest Department as land transfer cases in forest areas are being delayed un-necessarily.

(xvi) Lastly, the Committee noticed that there was non- availability of land for developing sanitary landfill in each ULB and quantity of inert waste was also very less. In the given circumstances, we deem it appropriate to issue following directions:

The inert waste is permitted to be disposed of while building roads, backfilling in retaining walls or filling up of appropriate areas on hilly areas as per Swachh Bharat Mission Municipal Solid Waste Management Manual, MoHUA. As regards, development of landfill sites, the same can be considered on cluster basis which can meet the requirement of other ULBs on payment basis by cluster ULBs.

App of Municipal Corporation, Shimla:

24. We are informed at the Bar that an App had been developed by the National Informatics Centre ("NIC") for redressal of grievance relating to the Municipal Corporation, but the same appears to have been disbanded or discontinued. The Municipal Corporation is directed to inform the Court about the status of the App by the next date of hearing. In case, it is inactive for any reason whatsoever, the same shall be activated by getting in .

touch with the NIC.

Plastic Flexi Hoardings/Banners in Shimla:

25. We are informed at the Bar that as regards the Ministry of Environment, Forest and Climate Change of the Government of India, it has already banned the banners appearing flexi vide its order dated 09.03.2020. In addition thereto, some of the

cities like Chennai, Bengaluru and Pune have taken measures to ban or restrict the use of plastic flexi banners due to concerns about environmental impact, visual pollution and safety hazards. The States like Kerala, Karnataka, Nagaland and Maharashtra have introduced bans and statewise regulations regarding plastic flexi banners. Whereas, in the State of Himachal Pradesh, such banners upto 100 are still being permitted.

26. In the facts and circumstances, we leave it to the Chief Secretary to the Government of Himachal Pradesh to take a call and while doing so, the Chief Secretary shall consider the fact which has prevailed upon the States like Kerala, Karnataka, Nagaland and Maharashtra to ban the use of plastic flexi banners.

27. In addition thereto, the Chief Secretary may also take into consideration the following points as suggested by Shri Deven Khanna, Advocate, for the petitioners:

"1. Hazardous Material:

Plastic Flexi is the most environmentally hazardous consumer material ever produced. In the process of its manufacture, toxic gases are produced. It is non biodegradable material which cannot be recycled and, therefore, of no resale value. The two sources for putting an end to the used Plastic Flexi are either to burn or to bury underneath the soil. If it is burnt, it will release highly toxic chlorine, dioxins and furan, which are carcinogenic, means any substance, radionuclide of radiation that is an agent directly in causing cancer. On the other hand, if it is buried to the soil, the toxins will enter into the water by leaching.

2. Visual Pollution:

The widespread use of Plastic Flexi banners leads to visual pollution in public spaces. Excessive signage and advertising clutter streets and diminish the aesthetic appeal of city and is an antithesis to the beautification of Shimla project.

3. Safety Concerns:

Plastic Flexi banners, when not installed properly can pose safety hazards. They may fall or become dislodged during adverse weather conditions, potentially causing accidents or injuries. Most of the banners are just left lying around in the open or thrown in the water streams significantly adding to the plastic waste problem and impacting the health and environment of the residents/citizens.

4. Resource Consumption:

The production of Plastic Flexi banners consumes significant resources including energy and raw materials. Banning or regulating their use can help conserve

resources and reduce energy consumption.

5. Aesthetic Value:

Banning Plastic Flexi banners can contribute to the overall .

aesthetic value of public spaces, making them more visually pleasing and inviting for residents and visitors.

6. Encouraging Alternatives: Banning Plastic Flexi banners can encourage the use of more sustainable and environmentally friendly advertising alternatives such as digital signage or eco- friendly materials."

Waste Audit:

28.Having heard the detailed submissions that were addressed by the parties, we are of the considered view that the entire exercise being undertaken by the Court would not yield its desired results in absence of waste audit.

29. Accordingly, we request the Integrated Mountain Initiative ("IMI") Society, Shimla, who have conducted similar audit survey in Ladakh, to conduct waste audit as expeditiously as possible and try to hand over their report by 30.09.2024.

30. List on 06.05.2024 when Chief Secretary to the Government of Himachal Pradesh, shall file its compliance affidavit, whereas, PCB, Director (Urban), District Magistrate, Shimla and Commissioners Municipal Corporations shall file their action taken report."

2. In compliance to the aforesaid directions, the respondents, including the Chief Secretary to the Government of Himachal Pradesh, Environment, Science Techonology and Climate Changer, HP Pollution Control Board, Municipal Corporation, Shimla and M.C. Palampur have filed their respective affidavits.

3. We appreciate the endeavours made by the Chief Secretary in ensuring the compliance of the various directions passed by this Court. At the same time, we also appreciate the stand taken by the other departments, more particularly the Municipal Corporation, Shimla in bringing out an action plan for making Shimla a Model Town (supra).

4. The learned counsel for the petitioner in CWP No.2369 of 2018) has given the para-wise compliance of the aforesaid order (23.03.2024) which is as under:-

.

INDEX OF THE ORDER DATED 23.03.2024

1. PART 1 - Extended Producers Responsibility (EPR)

a) Para (i) to (xi) - EPR i. EPR Registration Application Deadline:

ii. PIBOs and WMAs Coordination with PWPs:

iii. Upload PWP Details on HPSPCB Website:

iv. Recycler Reporting to HPSPCB:

v. PIBOs Collaboration with ULBs and GPs:

vi. WMAs Consolidated Details Submission:

vii. PWPs Tie-Up and EPR Certificate Generation:

viii. PIBOs EPR Compliance Progress:

ix. RDD Details of Gram Panchayats: x. ULBs EPR Registration Compliance:

b) Para 3: Brand Owners' Registration and Sales Data Submission

c) Para 4: Geo-Neutral Concept of EPR Certificates

d) Para 5: CPCB Direction for State-Specific Plastic Packaging Data

2. PART 2 - SOLID WASTE MANAGEMENT

a) Para 6: Shimla as a Model Town

b) Para 7: Amending Municipal Corporation Act Provisions

c) Para 8: Directive to Amend Municipal Corporation Act

d) Para 9: Bulk Generators (Waste Generation at Events, Rule 4 Sub-Rule 4 Compliance, Pre-Deposit Requirement)

e) Para 10 and 11: Training at HIPA

f) Para 10: Councillor Training and Ward Committee Meetings

g) Para 11: Directive to HIPA:

h) Para 13: Manpower/Staff

3. PART 3 - GENERAL DIRECTIONS:

a) Para 14, 15: Availability of Land

b) Para 17 and 18: Buffer Zone

c) Para 20 and 21: Solid Waste Management Charge

4. PART 4 - DIRECTIONS ON SUGGESTIONS MADE BY MULTI-MEMBERS COMMITTEE:

a) Para 23 (i): ULBs Manpower Deployment

b) Para 23 (ii): Penalty for Segregation Violation

c) Para 23 (iii): Safe Transportation of Waste

d) Para 23 Wet Waste (i): Wet Waste Processing

e) Para 23 Dry Waste (i): Transport Facilities by Cement Plants

f) Para 23 Dry Waste (ii): EPR Registration and Funding .

g) Para 23 Dry Waste (iii): SWM Site Maintenance Para 23 Dry Waste (iv) and (v): Tied Grants and Financial Constraints

h) Para 23 Dry Waste (vi): Waste Processing Facilities

i) Para 23 Dry Waste (vii): Nalagarh and Parwanoo ULBs Waste Management

j) Para 23 Dry Waste (viii): Rationalization of User Charges

k) Para 23 Dry Waste (ix) and Section (x): User Charges and Arrears

l) Para 23 Dry Waste (xi): Elimination of Hot-Spots

m) Para 23 Dry Waste (xii): Responsibility of Elected Bodies Para 23 Dry Waste (xiii) and Section (xiv): IEC Activities

n) Para 23 Dry Waste (xv): Land Transfer Cases

o) Para 23 Dry Waste (xvi): Disposal of Inert Waste

p) Para 24 - APP for Solid Waste by MCs

5. PART - 5 FLEX

a) Para 25, 26 and 27: Ban on the utilization of flexi banners in the state.

b) Para 28 and 29: WASTE AUDIT:

COMPLIANCE OF THE DIRECTIONS ISSUED IN ORDER DATED 23.03.2024 BY THE CHIEF SECRETARY , URBAN DEVELOPMENT DEPARTMENT (UDD), DEST&CC, HPSPCB AND MC SHIMLA DIRECTIONS ISSUED IN REPLY FILED BY THE RESPONDENTS ORDER DATED (Relevant Extracts from Affidavits filed in first 23.03.2024 week of May 2024 in compliance to Order Dated 23.03.2024) PART 1 - EPR PARA 2 OF THE ORDER i. All the entities, who REPLY OF CHIEF SECRETARY have not yet applied for The worthy Chief Secretary directed that the the EPR registration Member Secretary, HPSPCB shall ensure the shall submit the cases compliance of Hon'ble High Court directions within one month from pertaining to HPSPCB and file compliance today and for any affidavit in the Hon'ble Court on the next date query, the Units shall of hearing.

approach the ROs
between 4.00-5.00 p.m. REPLY OF UDD

Para 10. That it is most humbly submitted that login credentials for 57 ULBs has been generated on the Centralized portal of CPCB for EPR and one more ULBC. NP Narkanda has also been registered but not showing on the Portal Remaining two ULBs. ic. Chirgaon and Nerwa are unable to register as they do not have GST number Once they will provide the GST number they will also be registered on Centralized portal of CPCB for EPR.

.

REPLY OF HPSPCB As on date following is the status of the registration issued by State Board:

Entity	Entities registered
--------	---------------------

Processor

- The portal has resumed on 25.04.2024.

- State Board has issued a public notice to PIBOs and PWPs to obtain registration and the same has been uploaded on the website of State Board;

<https://hppcb.nic.in/PWM/> r Public_Notice_EPR_PWPs_PIBOs24.04.202

4.pdf (copy enclosed as Annexure-I) • A meeting was held on 20.04.2024 under the Chairmanship of Member Secretary, HPSPCB in the conference hall of HPSPCB with PIBOs, Plastic Waste Recyclers and ULBs wherein HPSPCB has taken decision to not issue Renewal of the Consent to Operate to entities unless they submit application on the centralized portal for EPR registration. Minutes of meeting is enclosed as Annexure-II.

ii. The registered REPLY OF HPSPCB

Producers,
Importers/Brand
Owners ("PIBOs") and

In the meeting held on 20.04.2024 all PIBOs
(who have obtained registration either from
HPSPCB or CPCB) have been directed to

Waste Management
Agencies ("WMAs") are
directed to explore the
registered Plastic
Waste Processors
("PWPs") in the State of
Himachal Pradesh as
the PWPs are working
on very minimal
capacity and it
otherwise would be
more economical to
process the waste
within the State rather
than transporting the
same to other State.

iii. The HPSPCB shall

ensure the compliance.

- Further, in the said meeting PIBOs submitted the information w.r.t. "EPR Target meet by PWP, Detail of tie up with ULBs or own collection system set, Any proposal for tie up with ULB/ setting up of collection system" etc." and the same is enclosed as Annexure-III.
- Further, all PIBOs have been directed to submit the information in the prescribed format.
- Further in the said meeting all PIBOs (who have obtained registration either from HPSPCB or CPCB) were directed to ensure the compliance of the direction issued by Hon'ble High Court.

REPLY OF HPSPCB

upload the details of the The information depicting the information registered PWPs in "Address, Email, Phone No., Plastic Waste State on its website, so Processing Capacity" has been uploaded on that PIBOs can the website of HPSPCB.

coordinate with PWPs The link;

in the State for their <https://hppcb.nic.in/ImpotantLink/> .

EPR fulfillment. Registered_PWPs_in_HP.pdf

- iv. Recycler (s) shall • In the meeting held on 20.04.2024, PWPs submit the detail of the were directed to the submit the information quantity of plastic waste to HPSPCB for the period of Jan-March, 24

processed to the within 7 days.
HPSPCB on quarterly basis.

v. All the PIBOs shall • In the meeting held on 20.04.2024 all submit the detail of the PIBOs (who have obtained registration plastic waste generated either from HPSPCB or CPCB) have been from their product in the directed to ensure the compliance. State of H.P. and the • Further, in the said meeting PIBOs PIBOs are directed to submitted the information w.r.t. "EPR collaborate with the Target fulfilment, Detail of tie up with ULBs ULBs and GPs through or own collection system, Any proposal for WMAs and work out the tie up with ULB/ setting up of collection modalities of effective system" etc." and the same is enclosed as collection, segregation Annexure-III.

and processing of • Further, all PIBOs have been directed to plastic waste through submit the information in the prescribed registered PWPs in the format.

State. A detailed report in this regard shall be submitted to HPSPCB within one month

vi. The WMAs are directed REPLY OF HPSPCB to submit the As per the record, following WMAs has been consolidated details identified who are engaged with PIBOs in the such as ;

State of Himachal Pradesh: -

(a) List of PIBOs on behalf

1. EPR Plastic Pvt. Ltd, Plot No 19, New of whom they fulfill EPR Cotton Market Layout, Behind Hotel targets in Himachal Rahul, Ganeshpeth, Nagpur, 440018 Pradesh;

2. Gem Enviro Management Private

(b) Details of plastic waste Limited Waste Management Agency collection in H.P. (the (WMA) Reg. office unit no. 203, Plaza-

detail information, shall 3, Central Square, Bara Hindu Rao, include the contact Delhi-110006 agreement with the 3. Recykal Rapidue Technologies ULBs/Vendor/Aggregator, Private Limited 401, Janardhan Plaza storage facilities in HP) Gachibowli Hyderabad, Telangana, Code:36

(c) Details of the disposal

4. The Shakti Plastic Industries of plastic waste. The 202/203/204/205, 2nd Floor, Business details shall be provided Classic, Chincholi Bunder Road, for financial year 2022-23 Malad (W), Mumbai 400064 and 2023-24 within 15

5. Rekart Innovations (P) Ltd. Corporate days.

Office: 2007, Sector-45, Gurugram, 122003 Reg. Office: 1K/72, NIT Faridabad, Haryana-121001 Despite various directions issued in meetings held on 26.09.2023. 29.02.2024, 01.03.2024 & 20.04.2024 the WMA have not submitted the requisite information.

In the meeting held on 20.04.2024, the .

WMAs have been directed to submit the information to HPSPCB within 1 week.

vii. All the registered PWPs REPLY OF HPSPCB are directed to tie up with ULBs/WMAs for In the meeting held on 20.04.2024, some the processing of PWPs submitted the detail w.r.t. EPR postconsumer waste certificate generation, Detail of PIBO to whom and start generating the EPR certificate has been issued, Detail of tie EPR certificate on the up with ULBs etc. and the and the same is Centralized Portal of enclosed as Annexure-IV. It was observed the CPCB and also that most of the PWPs do not receive waste ensure the submission from ULBs. Also, most of the PWPs have yet of annual report on the not initiated the EPR certificate generation on portal. the centralized portal.

r • State Board will conduct a webinar/ training session for PWPs and ULBs to give demo regarding EPR Certificate generation/ transfer on the centralized portal of CPCB in the month of May, 2024.

• In the meeting held on 20.04.2024 following directions has been issued: -

PWPs were directed to start generating the EPR certificate on CPCB portal and submit the annual report on the portal.

Further, all PWPs have been directed shall submit the information in the prescribed format as in Annexure-IV. Urban Development Department and Urban Local Bodies have been directed to ensure that the informal sector shall not take away the recyclable/ valuable plastic during the collection by ULBs or from the processing site of the ULBs at free of cost.

ULBs shall ensure that the recyclable plastic waste is stored in the shed with proper partition and the same shall be channelized to registered Plastic Waste Processors.

ULBs shall provide training to their staff/ workers so as to identify and segregate different categories of plastic waste (Cat-I, Cat-II, Cat-III, Cat-IV and Cat-V). Also, UDD have been directed to identify and shortlist the ULBs who have adequate Solid Waste Processing facility so that the identified ULBs can tie up with Plastic Waste Processors/ Recyclers to channelize the plastic waste of optimum quality to PWPs. 9) The identified/ shortlisted ULBs and PWPs shall make an agreement related to the transfer of EPR certificate on the CPCB centralized portal for EPR registration under PWM Rules, 2016 in .

view of the services (i.e. collection, transportation, segregation of plastic waste) provided by ULBs.

UDD shall conduct a meeting with Cement Plants operational in the State regarding the issue of transportation of waste for co-processing. Further, an agreement shall be made between UDD and Cement Plants regarding exchange of EPR certificate on the centralized portal of CPCB.

viii. All PIBOs working REPLY OF HPSPCB in the State of H.P. In the meeting held on 20.04.2024, all PIBOs shall submit progress of have been direct to comply with the direction.

EPR compliance through online portal on quarterly basis and not through offline mode.

ix. Rural Development REPLY OF HPSPCB Department ("RDD") The information is awaited. In the meeting shall provide the details held on 20.04.2024, RDD has been directed of the gram panchayats to submit the requisite detail within 1 week. wherein the plastic management units are REPLY OF CHIEF SECRETARY being established within Rural Development Department ("RDD") shall 15 days provide the details of the gram panchayats wherein the plastic management units are being established within 15 days.

x. All ULBs shall generate REPLY OF HPSPCB their login credentials In the meeting held on 20.4.2024, UDD on the Centralized apprised that the login credentials of 32 ULBs portal of CPCB for EPR has been generated. The credentials of the registration as has rest of ULBs shall be generated as and when already been directed the portal resumes. by this Court.

REPLY OF CHIEF SECRETARY It was apprised by Director (UD) that login credentials for 32 ULBs has been generated on the Centralized portal of CPCB for EPR and presently portal is not functional for further generation of login credential for which matter has also been taken up with the HPSPCB to resolve the issue.

The Chairman directed that HPSPCB may pursue the matter with CPCB and UDD to complete the registration process of all ULBs as soon as the portal becomes functional.

xi. All the ROs of the REPLY OF HPSPCB .

Pollution Control Board As on date following is the status of the ("PCB") shall submit registration issued by State Board:

progress report on fortnightly basis after	Entity	Entities registered
coordinating with all the		
stakeholders,	with	
	Processor	

• The portal has resumed on 25.04.2024. • State Board has issued a public notice to PIBOs and PWP's to obtain registration and the same has been uploaded on the website of State Board r [https://hppcb.nic.in/PWM/Public_Notice_EP R_PWPs_PIBOs24.04.2024.pdf](https://hppcb.nic.in/PWM/Public_Notice_EP_R_PWPs_PIBOs24.04.2024.pdf) (copy enclosed as Annexure-I).

• A meeting was held on 20.04.2024 under the Chairmanship of Member Secretary, HPSPCB in the conference hall of HPSPCB with PIBOs, Plastic Waste Recyclers and ULBs wherein HPSPCB has taken decision to not issue Renewal of the Consent to Operate to entities unless they submit application on the centralized portal for EPR registration.

REPLY OF MUNICIPAL CORPORATION SHIMLA The matter in this regard is under process.

PARA 3 TO 5: PERTAINS TO CPCB PARA 3. The brand- owners, who are operational in more than two States, are registered by CPCB on the centralized portal. During the registration and after

obtaining registration, these brand- owners are required to submit sales detail of the commodity packed in plastic packing. The data of sales submitted is based on the GST invoice and the portal is linked with the GST portal. However, we find that there is no bifurcation with respect to quantification of plastic packaging reaching to a specific State. PARA 4. Further, the EPR certificates to be purchased by PIBOs from PWPs is a geo neutral concept. The PIBO operational in State of Maharashtra can purchase the EPR certificate from PWP in West Bengal. The State Board has raised the issue regarding quantification of the plastic packaging being introduced by various PIBOs in the State of Himachal Pradesh, however, the same has been denied as the EPR mandate is geo- neutral.

PARA 5. The CPCB is directed to ensure that brand-owners submit the details of the plastic packaging sold in the State of Himachal Pradesh so that the EPR fulfillment of those brand-owners can be ensured within the State of H.P. (Copy of the Reply filed by CPCB for the above directions is taken on record and will be dealt with in next date of Hearing) .

PART 2 SOLID WASTE MANAGEMENT:

Role of Municipal Corporation:

Para 6:

To make Shimla as the Model Town, so that, what is achieved in Shimla, could be replicated in other ULBs.

REPLY OF CHIEF SECRETARY

It was directed that Commissioner, Municipal Corporation Shimla shall ensure strict implementation of SWM Rules, 2016. Status on action taken and future action

plans be submitted to Director, UD immediately.

MC SHIMLA in first week of May 2024 has r filed its affidavit alongwith 'ACTION PLAN' for making Shimla a model town.

Para 7 REPLY OF CHIEF SECRETARY (Amending the provisions It was decided that Principal Secretary (UD) of Municipal Corporation shall constitute a committee which shall Act) submit a detailed proposal for amending the provisions of Municipal Corporation Act, Section 44-H of the Rules, Regulations, Bye laws etc. suitably to Himachal Pradesh give municipalities the desired authority to Municipal Corporation Act, enforce the provision of various 1994, (for short, "Act"), environmental Laws that have come into provides for the duties and force after enactment of Himachal Pradesh functions of the Ward Municipal Corporation Act,1994 and similar Committees and one of proposal for amending Himachal Pradesh such duties as prescribed in Municipal Act,1994 and Rules be also sub-section (c) is to provide submitted.

assistance in solid waste management in the ward.

Unfortunately, the Municipal REPLY BY MUNICIPAL CORPORATION Corporation Act was SHIMLA TO PARA 7 AND 8 enacted in the year 1994 and even the rules, Action has been taken as mentioned above regulations and bylaws in reply to the para- 7. It is further submitted have been framed around that Municipal Corporation Shimla has the same time i.e. 1994.

formulated "Door-to-Door Garbage Whereas, the Solid Waste Collection & Disposal Bye-Laws-2018"

Management Rules have which has been notified on dated 24th April, been enacted and have 2020 in the Gazette of Himachal Pradesh. come into force only with (Annexure-II) effect from 01.04.2016 and It is further submitted that the action as despite this the provisions mentioned under the provision of Rule- 4 of the municipal laws, be it have also been initiated.

Municipal Corporation Act,

1. (a) MC Shimla has started the Rules and Byelaws framed segregation of waste at source and the thereunder have not been generators of the waste are requested to amended so as to give segregate the waste at source as per the municipal authorities the said Rules. And handover the segregated desired authority to enforce waste to the authorized workers of MC the provisions of the Shimla through SEHB Society.

environmental

laws

2.

(b)

The construction and

including are not restricted

demolition waste is not allowed to be mixed

to either "SWMR 2016" or

with the Municipal Solid Waste. Permission

Plastic Waste Management Rules, 2016, ("PWMR 2016"), Construction and Demolition Waste

for the transportation of C&D waste separately are issued by MC Shimla to the individual waste generators or bulk waste generators of C&D waste.

Management Rules, 2016, 3. MC Shimla has implemented the and other Rules and Act Door-to-Door garbage collection scheme in that have come into force whole of Shimla town. The public after coming into force the places/streets/paths etc. are also cleaned Municipal Corporation Act by the sanitation worker deployed by MC and the Municipal Act, Shimla/SEHB Society. The throwing /burial 1994. or burning of waste by the waste generators is not allowed. If any such incidence is noticed, notices/challans are done to the PARA 8 defaulters.

The Chief Secretary to the Government of Himachal

4. As mentioned above, MC Shimla has implemented the door-to-door garbage Pradesh is directed to collection scheme and imposed the user immediately take steps for charges for 13 different categories amending the provisions (Annexure-III).

of the Municipal

5. Further to the point mentioned under Corporation Act, Rules, Rule-4 that "No person shall organize an Regulations, Byelaws etc. event or gathering of more than one The respondents including hundred persons at any unlicensed place the Municipal Authorities without intimating the local body, at least and the Pollution Control three working days in advance and such Board are directed to person or the organizer of such event shall enforce with all its rigour, ensure segregation of waste at source and the provisions of Rule-4 handing over of segregated waste to waste collector or agency as specified by the local body.", it is submitted that the notification/orders in this regard shall be issued by MC Shimla for the compliance of this direction.

6. Street vendors are directed to keep suitable contained for storage of waste and handover the same to the authorized door- to-door garbage collectors or deposit such waste in the litter bins or in the garbage collecting vehicle in the area/zone.

7. The Resident Welfare Associations (RWA) are involved in the special cleanliness campaigns. The RWAs are also involved for the segregation of the waste in their locality and shall further be motivated to properly segregate and handover the waste to the authorized workers of MC Shimla. Similarly the waste is also collected from the communities/establishments and all the institutions having area more than 5000 sq. meter. They shall also be motivated to participate in the cleanliness drives and manage their waste as per the said Rules.

The waste is also collected by the workers of SEHB Society from all the hotels and restaurants. The bulk waste generators .

have been directed to manage their wet waste through composting or bio-methanation within their premises or through joint planning.

Para 9:

REPLY OF CHIEF SECRETARY

(BULK GENERATORS)

As a lot of waste is

The Director (UD) apprised the Chairman generated on occasions like that directions have already been conveyed marriage, birthday, to ULBs to ensure the strict compliance of retirement party etc., where the sub-rule 4 of Rule 4. The Chairman the venue is other than a directed all ULBs/stakeholders to implement hotel and waste is the same strictly.

shamelessly littered and
scattered everywhere.
However, we find that the

REPLY BY MUNICIPAL CORPORATION

Municipal Authorities are
not so toothless so as to

SHIMLA TO PARA 7 AND 8

enable them to deal with
such a situation because
sub-rule 4 of Rule 4 clearly
provides that no person can
organize an event or

The provisions of sub-rule (4) of Rule 4 are
being implemented in the jurisdiction of MC
Shimla.. The list of User Charges imposed
is attached as Annexure-III. It has been
observed that a lot of waste is generated on

gathering of more than one
hundred persons at any
unlicensed place without
intimating the local body, at

occasions like marriage, birthday, retirement
party etc., where the venue is other than a
hotel and waste is shamelessly littered and
scattered everywhere. As directed by the

least three working days in
advance and such person
or the organizer of such

Hon'ble Court the provisions of financial
implications as mentioned under this said
Clauses/Rules shall be imposed by making

event is required to ensure the segregation of waste at source and handing over of segregated waste to waste

amendments in the Garbage User Charges list. However, presently, the provision for the placing of dumper/vehicle is made under the user charges.

collector agency as specified by the local bodies. If the person or organiser has in the past not complied with the provisions of sub-rule (4) of Rule 4, then we permit the Corporation to demand a pre-deposit of at least Rs.10,000/- from the person or the organiser where the gathering is more than 100 persons up to 200 persons and likewise thereafter demand an additional Rs.10,000/- per 100 persons and refund the money to the person or the organiser, as the case may be, but only after deducting the necessary amount spent on the segregation, handing over and

transportation of the waste

and after levy of an

appropriate penalty. The Municipal Authorities may

consider amending its rules
on the aforesaid lines.

Para 10 and 11
(TRAINING AT HIPA)

REPLY OF CHIEF SECRETARY

The Director (UD) apprised that directions

have already been issued to Director, HIPA

10. There is no adequate to organize a training programme for training of the Councillors councilors in consultation with Municipal even though he/she is he Corporations. The Chairman directed that President of the Ward Commissioner, Municipal Corporation Committee in terms of Shimla may pursue the matter with Director, Section-44-C(3). Even the HIPA.

meetings of the Ward

Committee, as envisaged
under Section 44-D of the

REPLY BY MUNICIPAL CORPORATION

Act, to be conducted at
least once in two months for
discussing the
developmental issues and
plans of the ward

SHIMLA

As directed by the Hon'ble Court, the
Himachal Pradesh Institute of Public
Administration, Fairlawn, Shimla, ("HIPA")
will be requested to conduct at least a week-

concerned, are not held
and, if held, then there is no
discussion at all regarding
providing of assistance in

long course of all the Councilors apprising
them of not only the provisions as contained
in Municipal Laws, but also the various
provisions of the Environmental Laws.

solid waste management in
ward as statutorily provided
for in Section 44-H (c). This

is the salutary provision but
has not been followed with
all its rigour.

11. Himachal Pradesh
Institute of Public
Administration, Fairlawns,
Shimla, ("HIPA") is directed
to conduct at least a week-
long course of all the
Councillors apprising them
of not only the provisions as
contained in Municipal
Laws, but also the various
provisions of the
Environmental Laws.

Para 13:

(MANPOWER/STAFF)

REPLY OF CHIEF SECRETARY

The Director (UD) apprised that as per the

existing staffing structure of Urban Local The Chief Secretary to the Bodies, the following 05 categories of posts Government of Himachal are sanctioned/created for sanitation related Pradesh is directed to work in the ULBs;_ convene a meeting of the Secretary, Urban Local 1) Chief Sanitary Inspector Bodies ("ULBs") along with

2) Sanitary Inspector Municipal Commissioners of the Municipal 3) Sanitary Supervisor Corporations and the 4) Sanitary Jamadar .

Secretaries of the Municipal

5) Safai Karamchari Councils and ensure that adequate manpower is Thereafter, the vacant positions of these provided to these Municipal sanitation-related posts in ULBs were also Authorities for which the discussed in detail. The Pr. Secretary (UD) non-availability of finance to the Govt. of H.P. apprised the Chairman will be no excuse. that presently there is no vacant post of Chief Sanitary Inspector in the ULB.

However, 35 posts of Sanitary Inspector, 27 posts of Sanitary Supervisors, 12 posts of Sanitary Jamadar and 789 posts of Safai Karamcharies are lying vacant in the ULBs at present. It was further apprised that the vacant posts of Sanitary Inspectors and Sanitary Supervisors could not be filled up r due to the reason that the R&P rules of these categories are under process which will be finalized shortly. However, the vacant posts of Sanitary Jamadars, which are 100% promotional posts, will be filled up by promotion through the respective ULBs. The Pr. Secretary (UD) to the Govt. of H.P. further apprised the worthy Chief Secretary that the cadre of Safai Karamchari has been declared as dying cadre by the Govt.

The Director (UD) further apprised that work of collection, transportation and disposal of waste has been outsourced in most of the ULBs and only supervisory staff is required for monitoring the process of waste management in the ULBs. Further, it was also informed that Govt. has already given the approval for recruitment of 22 nos. of Sanitary Supervisor on outsource basis for which recruitment is under process.

After detailed discussion and deliberation, it was directed by the worthy Chief Secretary that remaining vacancies of Sanitation Staff as per requirement be submitted to Govt. for approval and the ongoing process of recruitment may be concluded at the earliest.

PART 3 - GENERAL DIRECTIONS:

Para 14, 15 REPLY OF CHIEF SECRETARY (AVAILABILITY OF LAND) The Chairman directed that all the Deputy Commissioners in the State to take The State Government is immediate necessary steps to facilitate directed to take immediate identification and allocation of suitable land steps for making land for as per clause (f) of rules 11 for setting up SWM facility to be available solid waste processing and disposal and file a status report on facilities to local authorities in their district. the next date of hearing.

Further, the Forest department was directed to look after the land cases where FCA is required on priority basis. The Deputy .

Commissioners will monitor land cases on fortnightly basis.

REPLY BY MUNICIPAL CORPORATION SHIMLA The Land is available with MC Shimla. The Waste to Energy plant has been set up at Bhariyal and the Land for Landfill Site is also available. However, for the development of C&D Waste three sites have been proposed and the cases are pending before the Nodal Officer for the clearance under FCA.

Para 17 and 18: REPLY OF CHIEF SECRETARY (BUFFER ZONE) The Director (UD) apprised that there are 16 r ULBs in the State where generation of It is informed that even waste is more than 5 TPD and where there where these sites are is a need to create a green buffer zone. available, no steps, at the It was directed that concerned ULBs shall first instance, have been check the feasibility and create buffer zone taken to prepare and create as per requirement of SWM Rules 2016. a green buffer zone and straight away the solid REPLY BY UDD waste is being dumped. Para 9. That the Deponent, vide letter dated 29.04.2024 Annexure R-8 requested If the site is unmanageable Municipal Corporation Shimla, Mandi, or has not been made Palampur, Dharamshala, Solan and available to the ULBs for Executive Officer / Secretary, Municipal SWM facility, then before Council / Nagar Panchayat, Baddi, Bilaspur, dumping any solid waste on Chamba, Hamirpur, Kangra, Nalagarh, the said sites the same Nahan, Paonta Sahib, Sunder Nagar, needs to be developed by Baijnath, and Una to take further necessary creating a buffer zone. The action to identify and notify Green Buffer Secretary (Urban Zone for SWM processing and disposal Development) and the facility in consultation with the Regional District Magistrate, Shimla, Officers of H.P State Pollution Control who have been entrusted Board. It is worthwhile to submit here that with the duties under there are 16 ULBs in the State where SWMR, 2016 shall file their generation of waste is more than 5 TPD

and personal affidavits where there is a need to create a green regarding due compliance buffer zone. It was directed that concerned of Rules 11 and 12 on the ULBs shall check the feasibility and create next date of hearing. buffer zone as per requirement of SWM Rules 2016.

REPLY BY MUNICIPAL CORPORATION SHIMLA As mentioned above, the Land is available with MC Shimla. The Waste to Energy plant has been set up at Bhariyal and the Land for Landfill Site is also available.

The demarcation of the site has been got done and the tender for the fencing of the site has been awarded. After that the Forest Department shall be requested to develop the Green Buffer Zone at the Solid Waste .

Management Site at Bhariyal by growing the locally fast growing species which will fit in the local environment.

Para 20 and 21: REPLY OF CHIEF SECRETARY (SOLID WASTE The Chairman directed that UDD shall MANAGEMENT CHARGE) prepare a proposal to levy tax on tourists at entry points of the State in the form of The State Government to sustainable development fee w.r.t. State empower the Local Bodies Environment Cess fee/Waste Management to levy solid waste fee after examining the Bhutan Model and management charges upon submit the proposal for the consideration of tourists at the entry point to Govt.

make the solid waste
management services
sustainable.

REPLY BY MUNICIPAL CORPORATION

The Government could take
a cue from Bhutan where in

SHIMLA

September, 2022, it
imposed a sustainable
development fee of dollars
200 per day per visitor.
However, fee was cut by

The matter with regard to levying of solid
waste management charges at the entry
points to make the solid waste management
services sustainable was discussed during
the meeting held under the Chairmanship of

half from September 2023

Addl. Director, UD in the meeting hall of

and fixed at dollar 100 per Urban Directorate on dated 27.04.2024. It day per tourist and in the was discussed and deliberated that this fee case of children age 6 to 12 may be charged at the entry points to years, they were required to Himachal Pradesh through the staff of pay dollar 50 per child and Excise Department and the mechanism for there was no fee for the same may be finalized at level of Govt. children age 5 or under. of Himachal Pradesh.

Thus, further action needs to be taken at the level of Govt. of Himachal Pradesh.

PART 4 Directions on suggestions made by Multi-members Committee:

Para 23 Section (i): REPLY OF CHIEF SECRETARY The ULBs are directed to It was directed that ULBs shall deploy sufficient manpower for ensuring 100% segregation and collection thorough segregation and collection outsource agencies as well.

and it should be ensured REPLY BY MUNICIPAL CORPORATION through outsource agencies SHIMLA as well.

For 100% segregation and collection, sufficient manpower has been deployed by MC Shimla through SEHB Society. Further man power shall be deployed as and when required.

Para 23 Section (ii): REPLY OF CHIEF SECRETARY .

It was directed that ULBs, HPSPCB and Strict penalty will be other line departments should take imposed by the ULBs for necessary steps to prohibit littering and violation of segregation at open dumping and impose strict penalty on source and littering.

violators. The ULBs shall ensure strict compliance of SWM Rules and submit action taken report to Director (UD) on monthly basis.

REPLY BY MUNICIPAL CORPORATION SHIMLA 204 nos. of challans under the HPMC Act, 1994/SWM Rules, 2016 have been imposed for the violation of segregation at source r and littering.

Para 23:
Section (iii):

REPLY OF CHIEF SECRETARY

It was directed that ULBs shall ensure 100% • Only segregation at source collection and compartmentalized transportation till scientific disposal. ULBs vehicles shall be utilize shall ensure that segregated waste is for the safe transported in compartmentalized vehicles.

transportation of
segregated waste by

ULBs .

REPLY BY MUNICIPAL CORPORATION

SHIMLA

- It shall be ensured that

For the safe transportation of segregated same shall be a waste compartmentalization of garbage mandatory condition for collection vehicles has been ensured. MC outsourced agencies Shimla has deployed compartmentalized 34 deployed for this nos. Covered garbage tippers, 15 nos. Pik-

purpose.

up vehicles and 1 Swachhta Vahan.

- The funds, if any, Besides this, MC Shimla has also deployed required for 3 tippers, 5 compactors, 1 litter picking compartmentalizing by machine, 1 jetting & grabbing machine and ULBs shall be met out 2 road sweeping machines.

from the tied grants or
out of their own
resources.

Para 23 Wet
Section (i):

Waste

REPLY OF CHIEF SECRETARY

It was directed that ULBs may adopt the • Looking to the quantum best available technology for treatment of of waste generation per wet waste as per their geographic/climatic day in ULBs which conditions. Further, Bulk Waste Generators varies from 0.5 TPD to shall be identified i.e. Industrial 100 TPD, the ULBs are units/Tourism Units/Hospitals/ Hotels/ directed to process the Temple Trust/ Police lines/Training same through Institutes/PGs/ Educational Institutes/APMC mechanized and other line departments in the State and composting with latest may direct them to treat their wet waste equipment's like onsite as per the provisions of SWM Rules, Organic Waste 2016.

Composters.

- On the similar lines,
decentralized drum
compositing can be

REPLY BY MUNICIPAL CORPORATION
SHIMLA

used for processing.

- Pit composting can

MC Shimla has set up a 100 TPD Waste to

also be considered but only in the lower parts of Himachal Pradesh where temperature

Energy plant at Bhariyal which is based upon Gasification Technology through Refuse Derived Fuel (RDF). Further, for setting up of a 15 TPD Bio-methanation

generally remains high.

plant at Bhariyal, the process has been

initiated and Request for Proposal (RFP) has been floated. The bulk waste generators are directed to process their wet waste through organic waste converter/drum composting etc. Similarly, MC Shimla has also set up a 1 TPD Bio-

methanation Plant at STP Lalpani.

Para 23 Dry Waste REPLY OF CHIEF SECRETARY Section (i):

The chairman directed to cement plants that The cement plants are they should ensure transport facilities for the directed to provide dry waste under Corporation Social transport facilities for the Responsibility and comply with the dry waste under Corporate directions of Hon'ble High Court w.r.t. 2369 Social Responsibility.

of 2018. The Industry Department/HPSPCB shall issue separate necessary directions in this regard to all the cement plants operational in the State.

REPLY BY MUNICIPAL CORPORATION SHIMLA The Municipal Solid Waste transported to the Waste to Energy Plant at Bhariyal is converted into RDF for further use to generate electricity. Partially the RDF is used for the production of electricity and partially RDF is also transported to the cement plant on daily basis by the project proponent i.e. M/s Elephant Energy Pvt. Ltd. Para 23 Dry Waste REPLY OF CHIEF SECRETARY Section (ii):

The chairman directed that Director, • All the ULBs, who are DEST&CC shall review the plastic buy back yet to register in policy and put up proposal to the centralized EPR portal of Government accordingly.

CPCB to earn credits in REPLY OF Department of Environment, plastic waste Science, Technology & Climate Change management and (DEST&CC) CPCB/HPSPCB are That the Hon'ble High Court was also directed to get pleased to direct the department to provide themselves registered funds to the ULBs to enforce plastic and thereafter provide all buyback policy since their financial position

necessary support to is weak. It is submitted that under Buy Back ULBs to channelize Policy, non-recyclable single use plastic funds from brand-

waste is being purchased from registered owners.

rag pickers and individual households @ • Since, the financial 75/- per kg. since 1st October, 2019. As position of the ULBs is per the Policy Guidelines the yearly weak, they are not in a estimated budget requirement are position to enforce 56, 25, 000/- per year and the provision to .

plastic buyback policy meet out the budget is made in the in

effectively.

- Therefore, we direct the Department of Environment, Science

following manner:-

- a. 1st year: 50% (DEST) +50% (SPCB).
- b. 2nd & 3rd year: 10% (DEST)

and Technology (DEST)
to provide funds.

+20%(SPCB)+20% (RD)+30%
(UD)+20%(EPR)

- c. 4th & 5th year: 10% (DEST)
+20%(SPCB)+20% (RD)+30%
(UD)+20%(EPR)

- d. 6th year onwards: 100% (UD & EPR)

As per the provision of the Policy so far the funds are being provided by the DEST&CC to the ULBs through UD Department against r the claims submitted after approval of the State Steering Committee. Till date, the DEST&CC has released 99,64,865.50/- (up to F.Y. 2022-23) i.e. 100% claim after approval from State Steering Committee. The claims amounting to 13,03,946/- received for F.Y. 2023-24 will be approved in 7th State Steering Committee Meeting being convened soon and funds are to be released by DEST&CC, SPCB, UDD, RDD and EPR as per the provisions in the policy.

REPLY BY MUNICIPAL CORPORATION SHIMLA Municipal Corporation Shimla is in the process to register itself in centralized EPR portal of CPCB to earn credits in

plastic waste management. Similarly MC Shimla is also implementing the plastic buy-back policy. It is further submitted that plastic is also part of RDF which is mostly being collected on the dry waste collection days i.e. Tuesday and Friday.

Para 23 Dry Waste REPLY OF CHIEF SECRETARY Section (iii):

The Chairman directed that SWM sites The SWM sites throughout throughout the State shall be properly roof- the State shall be properly topped, fenced and covered so as to ensure roof-topped, fenced and that no animals enter into the SWM facilities covered so as to ensure and further carry out plantation around the that no animals enter into sites. Further, funds if required by ULBs the SWM facilities and shall be met out from tied grants or out of further carry out plantation their own resources.

around the sites.

Para 23 Dry Waste REPLY OF CHIEF SECRETARY Section (iv) and (v):

The Chairman directed that Director (UD) • The State Government shall prepare and submit the proposal for may consider tied grant consideration of State Finance Commission for SWM under the State on analogy of Centre Finance Commission Finance Commission on to assist ULBs in effectively carrying out .

the analogy of Centre these activities.

Finance Commission to
assist ULBs in effectively
carrying out these
activities.

- As observed above, the
financial position of the
ULBs is very lean and,
therefore, they are
unable to enforce

provisions of law on

account of lack of
manpower and
resources.
Para 23 Dry Waste REPLY OF CHIEF SECRETARY
Section (vi):
r The Chairman directed that comments of
The Industry Department

Executive Officers, Parwanoo and Nalagarh has executed an agreement shall be taken by CEO, BBND and between Baddi-Barotiwal-

proposal be sent to Govt. after looking the Nalagarh Development clauses of the agreement to reconsider the Authority ("BBND"), ULBs agreement to manage their waste at their and M/s JBR Technologies site. Meanwhile, Nalagarh and Parwanoo for collection, transportation shall also prepare their action plans to and processing of solid manage waste at their own level.

waste of MCs, Baddi, Parwanoo, Nalagarh and 42 Gram Panchayats, but despite various directions and efforts made by Urban Development Department, M/s JBR is not able to ensure proper collection and transportation of waste at the site which is creating huge problems for these ULBs.

In such circumstances, we direct the ULBs to consider installing their own waste processing facilities through various line departments like HPSPCB, Industry, Tourism, APMC etc. while giving NOCs for registration of new establishments and thereafter their renewal Para 23 Dry Waste Section (vii):

The Nalagarh and Parwanoo ULBs have their own capacity to manage the waste. Therefore, both the ULBs are directed to reconsider the agreement to manage their waste at .

their own level.

Para 23 Dry Waste REPLY OF CHIEF SECRETARY Section (viii):

It was directed that ULBs to rationalize their A huge gap between the user charges as per the expenditure being cost of collection, incurred by them on the solid waste by transportation and making necessary amendments in their bye processing charges for laws. Collection of user charges shall be at MSW and user charges par to meet at least garbage collection and collection. As the user transportation charges.

charges being collected are

very less as compared to
the processing cost in all
the ULBs, in these
circumstances, it is directed
that all the ULBs will
rationalize

their user
charges as per the

expenditure being incurred
by them on the solid waste
by making necessary
amendments in their
byelaws.

The ULBs are directed to
ensure that the user
charges being collected
from the waste generators

should at least be at par
with collection and
transportation charges.

REPLY BY MUNICIPAL CORPORATION
SHIMLA

MC Shimla has imposed the user charges

as per the list attached. The user charges
may be re assessed as per the directions

issued by the Hon'ble Court in order to meet
out the collection and transportation
charges.

Para 23 Dry Waste
Section (ix) and Section

REPLY OF CHIEF SECRETARY

The Chairman directed that all the ULBs

(x):

shall devise the mechanism so that arrears on account of door-to-door garbage • It is
difficult for the ULBs collection/fines defaulted by the violators be to make
themselves included in the property tax on the next sustainable and recover financial
year as arrear. The necessary processing cost. In these amendments in the bye laws
and rules be circumstances, it is carried out if necessary.

directed that the user REPLY BY MUNICIPAL CORPORATION charges which are
not SHIMLA being paid by the waste generators shall henceforth be treated as The
matter with regard to recovery of the arrears. solid waste management charges to
make • Arrears on account of the solid waste management services door-to-door
garbage sustainable was discussed during the collection/fines defaulted meeting held

under the Chairmanship of by the violators shall be Addl. Director, UD in the meeting hall of included in the property Urban Directorate on dated 27.04.2024. It tax of the next financial was discussed and deliberated that the year as arrear so as to arrear of the door to door garbage collection improve the financial fee/fines shall be included in the property condition of the ULBs. tax of the next financial year as arrear so as to improve the financial condition of the ULBs. It was discuss to amend the relevant Clauses of the HPMC Act accordingly.

Thus, further action needs to be taken at the .

level of Govt. of Himachal Pradesh.

Para 23 Dry Waste REPLY OF CHIEF SECRETARY Section (xi):

It was directed that dedicated teams be It is directed that dedicated deployed by ULBs for elimination of hot teams be constituted by all spots. The penalties shall be strictly the five Municipal imposed by the ULBs on the violators. Corporations under the Further, RDD shall devise a mechanisms so supervision of Ward that gram panchayats shall treat their waste Councillors to eliminate at their own and clear the hotspots in the hot-spots and to avoid jurisdiction of PRIs and further HPSPCB is creation of new hot-spots.

directed to take a strict action against the We further direct the PRIs for open dumping especially in peri- Municipal Corporations to urban areas.

impose penalties on violators.

REPLY BY MUNICIPAL CORPORATION The Rural Development SHIMLA Department is directed to take responsibility of The MC Shimla has already given collection and disposal of permission to the surrounding panchayats to garbage in their respective bring their dry waste at the existing W2E areas and clear the hot-

Plant and the same shall be continued. spots in the adjoining areas in a systematic manner.

Para 23 Dry Waste REPLY OF CHIEF SECRETARY Section (xii):

The Chairman directed that elected The Committee noticed that members shall be sensitized about the as per the administrative Hon'ble High Court Orders w.r.t 2369 of structure of ULBs, all the 2018 by the ULBs. Further, ULBs were major decisions are being directed to put up the directions issued by taken in the house headed the Hon'ble High Court before the House of by President/Vice ULBs and to bring into the notice of entire President. It was observed house for strict compliance.

that in most of the ULBs, the elected bodies are either reluctant or opposing the issue pertaining to the measures required to be taken in SWM and only EO/Secretary of the concerned ULBs are held responsible for any lapse.

In the given facts and circumstances, we deem it appropriate to direct that henceforth all the Committee Members including the entire elected bodies especially President, Vice President shall be responsible for the speedy and effective implementation of the environmental laws and they shall be accountable individually as well as jointly.

Para 23 Dry Waste REPLY OF CHIEF SECRETARY .

Section (xiii) and (xiv):

The Chairman directed that IEC activities • There is lack of IEC shall be organized periodically by all the activities to create stakeholders and ward sanitation awareness among committees to be strengthened and masses or continuous activated by ULBs under the supervision of IEC activities with a view Ward Councillors as per directions of to create awareness at Hon'ble High Court.

the level of the ULBs. In
this view of the matter,
the IEC activities

REPLY BY MUNICIPAL CORPORATION

henceforth shall not only
be undertaken by the
ULBs but also by other
stakeholders as safe
environment is

SHIMLA

MC Shimla has formulated the ward
committees and various IEC activities are
carried out. Further, as directed by the

everyone's responsibility.
• For, IEC activities,

Hon'ble Court for, IEC activities,
NGOs/Yuvak Mandal/Self Help

NGOs/Yuvak
Mandal/Self Help
Groups/Beopar
Mandals/NYKs/Mahila
Mandals are ordered to

Groups/Beopar Mandals/NYKs/Mahila
Mandals shall be associated and Ward
Sanitation Committees shall be
strengthened and activated by MC Shimla
under the supervision of respective Ward

be associated or Ward
Sanitation Committees
are ordered to be
strengthened and

Councillors.

activated by ULBs under
the supervision of Ward
Councillors.

Para 23 Dry Waste REPLY OF CHIEF SECRETARY
Section (xv):

The Deputy Commissioner(s) in the State • The Deputy and Forest Department, HP
has been Commissioner is directed to comply the directions of Hon'ble directed to
process the High Court w.r.t. 2369 of 2018 and status be land cases in time submitted
to UDD.

bound manner of three
months and in case NOC
of transfer of land is not
granted, then
appropriate action under
the Panchayati Raj Act
be taken against such
Pradhan.

- These directions will
equally apply to the
Forest Department as
land transfer cases in
forest areas are being
delayed un-necessarily.

Para 23 Dry Waste REPLY OF CHIEF SECRETARY
Section (xvi):

It was directed that ULBs may initiate • There is a non-

identification of land for landfill sites on availability of land for cluster basis in ULBs
where quantum of developing sanitary inert waste is high and which can also cater
landfill in each ULB and to the nearby ULBs.

quantity of inert waste was also very less. In the REPLY BY MUNICIPAL
CORPORATION .

given circumstances, we SHIMLA

deem it appropriate to

issue following

The Landfill Site for dumping of the inert directions:

material is available with MC Shimla. • The inert waste is For the development of Landfill Site the permitted to be disposed tenders shall be floated after the Model of while building roads, Code of Conduct.

backfilling in retaining walls or filling up of appropriate areas on hilly areas as per Swachh Bharat Mission Municipal Solid Waste Management Manual, MoHUA.

- As regards, development of landfill sites, the same can be considered on cluster basis which can meet the requirement of other ULBs on payment basis by cluster ULBs.

Para 24:

REPLY OF CHIEF SECRETARY

- The Municipal

It was directed that Municipal Corporation Corporation are directed Shimla shall comply with the directions of to inform the Court about the Hon'ble High Court and submit the the status of the App action taken report for the same.

developed by the
National Informatics

REPLY BY MUNICIPAL CORPORATION

Centre ("NIC") for

SHIMLA

redressal of grievance by
the next date of hearing.

The App for the collection of the User Fee • In case, it is inactive for was developed, which is in use. However, any reason whatsoever, for the redressal of the grievance WhatsApp the same shall be No. 9805201916 and GOI Swachhta App activated by getting in are being used, which can be downloaded touch with the NIC.

from the Play Store.

PART - 5 FLEX Action against usage of In year 2024, State Board has conducted banned items in State of 53 number of challan amounting to Himachal Pradesh: - 1,17,500/- under HP Bio-degradable Garbage (Control) Act, 1995.

Para 25, 26 and 27: REPLY OF CHIEF SECRETARY • Ban on the utilization of It was directed that separate meeting with flexi banners in the state.

Director, IPR shall be convened by • In the State of Himachal Pradesh, such banners up to 100 microns are still report to Worthy Chief Secretary within one being permitted.

month.

• In the facts and circumstances, we leave it REPLY OF HPSPCB to the Chief Secretary to H. P. State Pollution Control Board have the Government of carried out special drives for inspection of Himachal Pradesh to take PVC Banners installed at various locations a call and while doing so, in State of H.P. About 184 entities has .

the Chief Secretary shall been inspected during the special drive, consider the fact which however, during the inspection/special has prevailed upon the drives by the officials of HPSPCB, no States like Kerala, manufacturing units in State of H.P. were Karnataka, Nagaland and found to be engaged in the sale/ Maharashtra to ban the manufacturing of the PVC/ Flexi banners of use of plastic flexi less than 100 microns. The action taken banners. report from all ROs is enclosed as • In addition, thereto, the Annexure-V Chief Secretary may also take into consideration the REPLY OF DEST following points w.r.t. flexi That the Hon'ble High Court was also banners, as suggested by pleased to direct the Deponent to consider Shri Deven Khanna, banning the PVC/Flexi banners upto 100 Advocate, for the Miron thickness. In this regard, it is petitioners: submitted that the State Government vide

1. Hazardous Material: Notification No. STE-F- (4)-1/2020 dated Plastic Flexi is the most 20.07.2022 Annexure R-3 issued under environmentally hazardous the Himachal Pradesh Non Bio-gradable consumer material ever Garbage (Control) Act, 1995, has banned produced. In the process of sale of various single use plastic items its manufacture, toxic gases (SUPs) including PVC/Flexi banners of are produced. It is non thickness less than 100 microns. Further, biodegradable material which the State Government has authorized cannot be recycled and, officials of 13 different Departments to therefore, of no resale value. impose fines / compounding of offences

2. Visual Pollution: The under the H.P. Non-Biodegradable widespread use of Plastic Garbage (Control) Act, 1995 such as Flexi banners leads to visual Police, Department of Revenue, Tourism, pollution in public spaces. Forest, Food & Civil supplies, H.P. State Excessive signage and Pollution Control Board etc. The H.P. State advertising clutter streets Pollution Control Board has imposed and diminish the aesthetic highest number of challans. In the year appeal of city and is an 2021, 2022 & 2023, the State Board has antithesis to the done challans amounting to the tune of beautification of Shimla 2,03,000/-, 9,34,000/- and 8,49,000/ project.

respectively for illegal littering, use, sale,

3. Safety Concerns: Plastic distribution, stocking, importing of Flexi banners, when not prohibited plastic items. The State Police installed properly can pose has also imposed a number of challans safety hazards. They may fall under H.P. Non-Biodegradable Garbage or become dislodged during (Control) Act, 1995.

adverse weather conditions, 9. The Deponent vide letter dated potentially causing accidents 05.01.2024 Annexure R-4 has issued or injuries. directions/instructions to all the

4. Resource Consumption: administrative Departments to ensure that The production of Plastic in all tenders and subsequent procurement Flexi banners consumes of materials for banners/hoardings etc., significant resources strict adherence shall be made with respect including energy and raw to the specifications of materials used in materials. banners/ hoardings and it must not be PVC

5. Aesthetic Value: Banning or plastics below the thickness of 100 Plastic Flexi banners can Microns. Further direction has been given contribute to the overall to all the Departments that all the Plastic or aesthetic value of public PVC Banners/hoarding made of thickness spaces, making them more less than 100 microns should be visually pleasing and inviting removed immediately in strict adherence to .

for residents and visitors. HP Bio-degradable Garbage (Control) Act,

6. Encouraging Alternatives: 1995 and the Plastic Waste Management Banning Plastic Flexi Amendment Rules, 2016. The field officers banners can encourage the of H.P. State Pollution Control Board use of more sustainable and (HPSPCB) are carrying out special drives environmentally friendly for inspection of PVC Banners installed at advertising alternatives such various locations in State of H.P. Also, the as digital signage or eco- inspection of the manufacturing units friendly materials. engaged in the sale/manufacturing of the PVC/Flexi banners in the State of H.P. are being carried out. The PCB has reported that about 184 entities has been inspected during the special drive, however, no manufacturing units were found to be engaged in the sale/manufacturing of the r PVC/Flexi banners of less than 100 Microns.

WASTE AUDIT REPLY OF CHIEF SECRETARY PARA 28 and 29 The Chairman directed that Commissioner, Having heard the Municipal Corporation Shimla shall share detailed submissions the copy of Hon'ble High Court with that were addressed by Integrated Mountain Initiative ("IMI") and the parties, we are of the ensure compliance.

considered view that the entire exercise being REPLY BY MUNICIPAL CORPORATION undertaken by the Court SHIMLA would not yield its desired results in Matter has been taken up with the absence of waste audit.

Integrated M o u n t a i n Initiative ("IMI") It is requested the Society, Shimla for doing the needful.

Integrated M o u n t a i n
Initiative ("IMI") Society,
Shimla, who have

conducted similar audit
survey in Ladakh, to
conduct waste audit as
expeditiously as
possible and try to hand
over their report by
30.09.2024.

5. The compliance of MC Shimla to Para-6 of order dated 23.03.2024 i.e "to make Shimla as the Model Town, so that what is achieved in Shimla, could be replicated in other ULBs" are provided in the table below:-

REPLY OF MUNICIPAL CORPORATION SHIMLA ACTION PLAN FOR MAKING SHIMLA A MODEL TOWN IN COMPLIANCE OF ORDER DATED 23.03.2024 PASSED BY HON'BLE HIGH COURT IN CWP NO. 2369 OF 2018 (SULEMAN VERSUS UNION .

OF INDIA & OTHERS).

In this regard, the points of the reply to Para 6 are as under:-

ACTION ALREADY TAKEN/INITIATED. The following actions have already been taken or initiated.

1. Collection of Waste: - Municipal Corporation Shimla has implemented the door-to-door garbage collection scheme through SEHB Society and has deployed sufficient manpower to collect the waste from the point source of generation from the households and other commercial establishments etc.

2. The implementation of the door-to-door garbage collection scheme:- This scheme is being monitored by the Corporation Health Officer, Project Coordinator, Sanitary inspectors, SEHB Coordinators and Ward Supervisors. Besides this a WhatsApp number 98052-01916 has been publicized as Complaint Redressal Number. This WhatsApp number 98052-01916 is also written on all the MC garbage collection vehicles, hoardings and banners installed/placed at different locations in the Wards. Anyone can file Swchhta/Sanitation or door-to-door garbage collection related complaint through call or WhatsApp message on this number. A complaint register is also maintained and the complaint is forwarded to the respective Sanitary

Inspectors/SEHB Supervisor for early compliance.

3. User Charges:- MC Shimla has imposed the user charges for different categories which are attached herewith as Annexure-A. Further, as directed by the Hon'ble High Court, the provisions for prior permission by depositing the fixed fee for carrying out function with a gathering of 100 to 200 people shall be imposed and added in the User Fee Category.

4. Collection of user charges:- For the collection of user charges, these can be deposited through online mode through web application, QR Code, Suvidha Kendra of MC, through POS machines or at Lok Mitra Kendra.

5. Door-To-Door Garbage Collection and Disposal Bye-Laws, 2018: MC Shimla has also formulated door-to-door garbage collection and disposal bye-laws, 2018 which are published/notified in the Gazette of Himachal Pradesh on dated 24.04.2020. These Bye-laws are made by Municipal Corporation Shimla, for regulating the Door-to-Door Garbage Collection & Disposal-2018 in exercise of the powers conferred by section 395 of the Himachal Pradesh Municipal Corporation Act, 1994 (Act No. 12 of 1994) read with the Solid Waste Management Rules, 2016 having been confirmed by State enforcement, as required under section 397(1) of the aforesaid Acts.

Under the Chapter-VII of the Door-to-Door Garbage Collection & Disposal-2018, the provision of prosecution and penalties has also been made. Under the prosecution, it is clearly mentioned that even the prosecution can be made on the official/workers responsible for implementing so called services under the above said Bye-laws if they are not performing their task or delaying their responsibility to implement the services and provisions for disconnection of water supply, electricity and other civic amenities .

are also made.

It is specifically mentioned that "whosoever contravenes the provision of above said Bye-laws shall be in addition to the penalties already mentioned under any act/rules/laws/bye-laws for time being in force would be liable for disconnection of water supply, electricity and other civic amenities and the Commissioner of the ULB may request the competent authorities to withdraw any other services if granted in favour of Institution/Commercial Establishment/person committing the offence."

6. Segregation of waste: MC Shimla is putting more emphasis on Segregation of Garbage at the point source of generation, for which regular meetings with the garbage collectors are being carried out by the Sanitary Inspectors/Coordinators & SEHB Supervisors Further; drivers are also given directions to further transport the garbage in segregated manner.

7. Transportation of Waste:- For the safe transportation of segregated waste compartmentalization of garbage collection vehicles has been ensured. MC Shimla has deployed compartmentalized 34

nos. Covered garbage tippers, 15 nos. Pik- up vehicles and 1 Swachhta Vahan. Besides this, MC Shimla has also deployed 3 tippers, 5 compactors, 1 litter picking machine, 1 jetting & grabbing machine and 2 road sweeping machines.

8. PPEs: MC Shimla is providing Personal Protective Equipments to all its Sanitation workers (MC & SEHB) from time to time.

9. Formation of Ward Committees:- Ward committees have been formulated under the chairmanship of respective Councilor.

Further, as directed the actions for the Amendment of the HPMC Act, 1994 has been initiated. A Committee for the amendment of HPMC Act has been formulated in compliance to the order dated 23.03.24 passed by the Hon'ble High Court of Himachal Pradesh in the above cited CWP No. 2369/2018. The mandate of the Committee is to submit a detailed proposal for amending the provisions of HPMC Act, Rules, Regulation, Bye-Laws etc. suitably to give Municipalities desired authority to enforce the provisions of various environmental Laws that have come into force after the enactment of HPMC Act, 1994 and Himachal Pradesh Municipal Act, 1994. The process in this regard has been initiated and the first meeting of the Committee was held on 27.04. 2024 in the office of Urban Development Department, Shimla. After detailed discussions and deliberations it has been recommended by the Committee to amend the provisions of Clause 43 & 44 (H) of HPMC Act, 1994 and to add section under these Clauses for giving more responsibilities to the ward committees/elected representatives and subsequently amend the Section 8 and 16 of the HPMC Act, 1994.

Similarly, it is also proposed to amend the relevant clauses under Property Tax by adding to collect the arrear with interest and also legal provisions may be made under the Revenue Act by taking NOC from the MC Shimla for property registration.

10. IEC: MC Shimla has been organizing various IEC activities from .

time to time. This also includes exposure visits to various elected representatives/ Officers/Officials/Sanitation Workers, Nukkar Nataks, awareness among school children by way of lectures, organizing meetings with sanitation staff/SEHB Supervisors and workers, promotion through Jingles, Pamphlets, Posters, Banners, Hoardings etc. NGOs/Yuvak Mandal/Self Help Groups/Beopar Mandals/NYKs/Mahila Mandals shall be associated and Ward Sanitation Committees shall be strengthened The Elected representatives were also provided Training at HIPA and as directed by the Hon'ble Court further a week long training shall be imparted to the elected representatives through the specialized facility at HIPA.

11. C&D Waste:- This waste is being collected separately and charges are being collected as per the assessment made during the map approvals. The site at Bhariyal has been identified for the disposal of C&D Waste, which is also being used to cover the inert waste emanated from the operation of waste to energy plant at Bhariyal on daily basis. Now provision has been made in the budget to provide the vehicle on demand for the collection & transportation of C&D waste on chargeable basis.

12. Participation of RWA/market Associations:- The active participation of RWA/Market Associations shall be ensured for processing of the wet waste at their source as well as possible. However, sometimes during the special cleanliness campaigns, the participation of RWA/Market Association/NGO are made.

13. Waste to Energy Plant:- The Municipal Solid Waste transported to the Waste to Energy Plant at Bhariyal is converted into RDF for further use to generate electricity. MC Shimla has set up a 100 TPD Waste to Energy plant at Bhariyal which is based upon Gasification Technology through Refuse Derived Fuel (RDF). Partially the RDF is used for the production of electricity and partially RDF is also transported to the cement plant on daily basis by the project proponent i.e. M/s Elephant Energy Pvt. Ltd.

14. Bio-methanation Plant:- MC Shimla has also set up a 1 TPD Bio-

methanation Plant at STP Lalpani. Similarly, actions for the centralized disposal of the wet waste by setting up of a 15TPD capacity Waste to Biomethanation plant at Bhariyal have been initiated and Request for Proposal (RFP) has been floated. The bulk waste generators are directed to process their wet waste through organic waste converter/drum composting etc.

15. Dry Waste Collection from adjoining panchayats:- The MC Shimla has already given permission to the surrounding panchayats to bring their dry waste at the existing W2E Plant and he same shall be continued.

16. Maha Safai Abhiyans: The places like hill sides & nallahs have been identified where people/tourist throw the garbage in odd hours. These have become hot spots. The Special Maha Safai Abhiyan on every Wednesday of every week are commenced at various existing hotspots/hill sides & nallahs. To make it more effective all the Chief Sanitary Inspectors and Sanitary Inspectors of MC Shimla are directed to submit their weekly Action Plan on every .

Monday, so that same can be appraised to various schools, NGOs, public, newspaper and media for their contribution.

17. "No Littering Zone". MC Shimla has planned to install signages with the message of "NO LITTERING ZONE" at various places in Shimla which are vulnerable to become hot spots. The signage will be in HINDI/ENGLISH, showing the message of No Littering along with the phone number of concerned Sanitary Inspector for complaint redressal & quarries along with mentioning the penalty clause in case of non-compliance. The WhatsApp No 9805201916 shall also be mentioned for this purpose.

18. Pre-monsoon Cleanliness Campaign: MC Shimla is also organizing PRE-MONSOON PREPAREDNESS in which a list of all the nallahs are to be cleaned along with date of work will be mentioned. It will be MC Shimla's priority to keep the nallahs garbage free and muck free so that no calamities may happen in future as the Shimla had seen in its previous disasters.

19. Biometric Machines: As per directed by Hon'ble High Court of Himachal Pradesh, MC Shimla is procuring the biometric machines which will be located in each ward for the attendance of the field staff.

20. Route Plan of Vehicles: The route plan of the garbage transporting vehicles is being prepared. This shall be implemented for effective & efficient waste collection from different parts of the City.

21. Bulk Waste Generators: Directions are being issued to the identified Bulk Waste Generators to process their waste in their own premises or have joint planning for wet waste disposal at their end.

22. Waste to Biomethanation Plant: RFP for setting up of a 15TPD capacity Waste to Biomethanation plant has been floated for effective disposal of the wet waste collected from different parts of City. It is also proposed to deploy a separate vehicles for the collection of such waste.

23. A special driver is planned to remove all the unauthorized banner pasted/installed all over the Shimla City. This shall be done by the workers of Health Department alongwith the staff of Estate Branch.

24. Operation & Maintenance of PT/CT: The work for the O&M of all the CT&PT has been entrusted to M/s Sulabh International Social Service Organisation. The signages mentioning the rates for the use of toilets and Free for Urinals alongwith complaint Nos. Sulabh & MC Shimla in English as well as Hindi language are fixed at each toilet.

25. Reduce Reuse Recycle (RRR) Centre: MC Shimla has set up a RRR Centre at Chhotta Shimla, where people can deposit their used utensils and other useable items for further collection by the needy people. A proper record for the incoming and out-going .

items is kept at this centre. It is proposed to establish 3-4 more such centers in the MC Shimla area.

Further the use of certain items to produce the usable items is also encouraged in some of the schools.

26. Action taken on the identified vulnerable areas:

1. The various manholes which are prone to garbage dumping were identified and covered using concrete RCC covers at 40 main locations.

2. The 20 hot spots areas over the various nallahs/ drains which are prone to dumping of garbage were identified fenced off using metal jallies/wire meshes.

3. The 2 no. of garbage nets were installed at 2 locations namely below Ritz and below Jodha Niwas.

4. More than 100 no. of cleanliness drives are being carried out in all wards of Municipal Corporation Shimla and this activity is continued on daily basis in routine as mentioned elsewhere above.

The photographs in this context are as follows. It is also proposed to further take such actions continuously so that no waste is found littered.

RCC Covers fixed over Manholes at Ward No. 13, 14 and 15.

S.No	Locations	Ward Name	No.
	Nagar		
	Nagar		
	Bazar		
	Bazar		
	Bazar		
	Middle Bazar		
	Ram Bazar		
	Bazar		

27. Plastic Waste Buy Back Policy & Concept of Poly Bricks: The plastic waste is part of RDF. However, MC Shimla is also implementing this policy launched by the GOHP. Further, the waste can also be managed by putting into the plastic bottles, thus forming a poly brick which can then be used in the parks etc. **PROPOSED ACTION PLAN:**

Besides continuing the above mentioned points, it is further proposed to innovate and adopt the State of Art Technologies and take steps from the Best Practices adopted at various other places in the country. The Following is also proposed I. Adoption of surroundings: It is proposed to launch and involve the participation of individuals, schools, institutions for the adoption of the areas surrounding to their premises that they will keep a watch on such areas for keeping these clean at all the times. They will also act as watchdog and inform the MC authorities regarding any illegal dumping/littering in the area. Schools can adopt an earmark area surrounding to their school. Similarly, the institutions like big offices can also adopt such practices. The officers of MC Shimla and individuals can also adopt to monitor the public/community toilet in their area/locality which they can monitor easily. This will help in the maintenance of the sanitation services and also create awareness among the general public as well as tourists. II. Adoption of Toilets blocks: As mentioned above, The officers of MC Shimla and individuals can also adopt to monitor the public/community toilet in their area/locality which they can monitor easily. This will help in the maintenance of the sanitation services and also create awareness among the general public as well as tourists.

III. Compliant redressal Number & Swachhta App: MC Shimla has a dedicated WhatsApp number 98052-01916 where complaints related to sanitation and C&D waste etc. can be lodged by calling or sending WhatsApp message. This number is also written on all the garbage collecting transportation vehicles. This number shall be given wider publicity so that complaints can be redressed at the earliest. Similarly, Swachhta App can be downloaded from play store by any citizen where they can lodge the complaints regarding various components including sanitation and littering etc. This shall also be given by wider publicity and the citizens shall be encouraged to use this app more frequently for the redressal of their complaints.

IV. Flying Squad:- It is also proposed to formulate a flying squad who can visit any area and households/commercial establishments randomly on any day to carry the surprise visits to ascertain the sanitation condition of Shimla town, public and community toilets, drainage and door-to-door garbage collection scheme etc. This flying squad team can also inspect the attendance pertaining to the presence of workers in field. This shall definitely help in improving the sanitation condition in the town. V. Serv Mangal Abhiyan: It is proposed to form teams comprising of members from Health Department, R&B, Tax Department, AP Branch and Estate Branch. Each team shall have a team leader who will work as Chairman of respective team and each

team will be assigned 5-6 wards for inspection. It is proposed that these teams will visit their respective wards and inspect regarding any problem or work to be executed and redressal of problems on the spot or in short term measures or in long term plans. The inspection reports shall have to be submitted to the Commissioner, MC Shimla regarding the points of actions to be taken and action taken report of the previous inspection done within time bound manner. It is also proposed that the Serv Mangal Abhiyan teams shall visit their respective wards on 2nd and .

4th Tuesday of every month. It is expected that most of the complaints can be redressed on the spot or in shorter measures by fixing responsibility of the concerned officer/official. This will lead in upgradation of the sanitation conditions with better living environment to the satisfaction of the general public through public participation.

VI. Involvement of informal rag pickers: It is proposed to motivate and involve more number of informal rag-pickers in the sanitation related programs and door-to-door garbage collection scheme. This will definitely have a positive impact on the environment as well as the dignity of these informal rag-pickers shall also be raised. g

VII. Water Bottles in the meetings to totally banned: It has been observed that during the meetings/conferences, the water is being served to the participants by providing small mineral water bottles which needs to be stopped fully. MC Shimla during such meetings shall also ensure that water is not served in plastic bottles. For this, action needs to be taken by all the Departments in Shimla and also in the State of Himachal Pradesh. This will help in ensuring the sanitation condition in the town.

VIII. Waste to Wonder Park: It is proposed to develop a Waste to Wonder Park where the different items prepared from the waste recycled material can installed for waste utilization/recycling and awareness among the general public for the concept of 3 R's i.e. Reduce, Reuse and Recycle. This will help in ensuring and up- gradation of the sanitation condition in the town. IX. Shoot System at Sabji Mandi: It is proposed to construct a stainless steel Shoot system at Sabji Mandi for the transportation of Sabji Mandi waste upto the bifurcation near Cart Road using the gravity method. This will ensure the timely clearance of waste at Sabji Mandi and will help in ensuring and up-gradation of the sanitation condition in the area. This will have to be developed along/above the natural nallah and for this purpose MC will have to get the land in its name. On successful operation of this practices, it can be replicated at various places like Fingask etc. This will also require less number of manpower.

X. Route Plan of Vehicles: The preparation route plan of the garbage collecting vehicles is under process and it shall be ensured to ply the vehicles as per the route plan which will help in timely clearance of the garbage from different wards/areas. These route plans shall be publicized for more convenience to the workers of MC/SEHB Society as well as citizens of Shimla. XI. GPS System & IOC Rings: All the garbage collecting vehicles shall be ensured that the GPS & IOC Rings remains in

operation all the time. This will help in proper monitoring of the vehicles including the fuel consumption. With the installation of the IOC Rings, MC Shimla shall be able to ensure & monitoring the diesel being filled in the vehicles at the petrol IOC pumps and the same can be monitored on the computer dash board while in the office. This shall help in stopping the pilfrillage, if any besides saving to depute man power at the petrol pump.

XII. To make awareness regarding e-waste: It is also proposed to make awareness regarding e-waste that it is managed as per the Rules meant thereof.

XIII. Flex<100 Microns to be discouraged: As directed by the Hon'ble Court, any direction in this regard from Govt. of Himachal .

Pradesh shall be adhered.

XIV. Feedback on website: The web application on MC website to get feedback from the general public regarding providing sanitation services in MC Shimla shall be used.

XV. Decentralized Waste Processing: The possibility to process the waste through Decentralized Waste Management shall be explored by installing MRF & small Biomethanation plants in University/Wards.

XVI. SBM Programme of GOI: MC Shimla shall implement the various components of SBM to improve its ranking.

XVII. ODF++: MC Shimla shall maintain the standards/Norms to retain the ODF++ Certification.

XVIII. GFC: MC Shimla shall make its best efforts to get ranking in the GFC Certification.

XIX. IEC in schools: This activity shall be carried out in all the schools for motivating them to reduce, reuse and recycle the waste generated at their school. A running trophy and prizes can be given to the winning schools. This will help in keeping the areas clean and also generating awareness among the school children. Further, NGOs/Yuvak Mandal/Self Help Groups/Beopar Mandals/NYKs/Mahila Mandals shall be associated and Ward Sanitation Committees shall be strengthened XX. Waste Audit: As directed, this matter is being taken up with Integrated Mountain Initiative (IMI) to complete the Waste Audit for Shimla by 30.09.2024.

XXI. Registration on EPR Portal: MC Shimla is in the process to generate its login credentials on the Centralized portal of CPCB for EPR registration as has also been directed by the Hon'ble Court. Further, action shall be taken under the EPR to earn

the credits.

XXII. Involvement of SHGs: The involvement of local SHGs in Solid Waste Management and monitoring of Public/Community Toilets shall be ensured wherever required.

XXIII. Commercial operation of W2E Plant: Though the electricity is generated on Pilot basis and RDF section is fully functional, efforts shall be made to make the Waste to Energy Plant fully functional at the earliest to produce the electricity on commercial basis. XXIV. City Sanitation Committee: It is also proposed to constitute/update the City Sanitation Committee where the senior citizens/NGOs active individuals can be members and involved in the Solid Waste Management.

XXV. Real Time Attendance: MC Shimla is in the process for the installation/fixing of the QR code at each household/commercial establishments. The garbage collectors shall be provided watches through which they shall be required to scan the QR Code which will ensure that the garbage is lifted from the premises. Besides, it may be possible that the owners may deposit their fixed user charges by scanning the QR Code.

XXVI. MRF & Transfer Station: MC Shimla has procured Compactors with higher capacity. It is proposed to develop one MRF within the city and then the Compactors can be used for the transportation of the waste to the W2E Plant. It is also proposed to use Compactor as Stationary Compactor, where the pick Up vehicles bringing waste from far flung areas can put the waste into the compactors for further economical transportation of the same to the W2E Plant, thereby saving the time and increasing efficiency of vehicles in the wards as the Pick Up vehicles can reach their wards at the earliest to collect the garbage.

.

XXVII. EV Vehicles & Carbon Credits: As per the policy of the Government, as many vehicles are likely to complete 15 years of their operation, these vehicles shall be replaced by EV vehicles in phased manner depending upon the availability in the market. MC Shimla shall also make its best efforts to earn Carbon Credits for reducing the carbon emissions using environment friendly technologies.

XXVIII. Paper Waste Recycling: It is a fact that lot of paper waste is generated in the offices in the IT Sections and such institutions, which presently is being mixed with the general waste. Once it is mixed with the general waste the value of the waste is lost. It is proposed that the paper waste can be collected separately, stored at the individual offices and then this waste can be collected separately and get recycled. This will help in the improvement in the environment indirectly by saving trees. Similarly, the records which are to be destroyed at the offices may be collected,

shredded and get recycled. For every 2.5-3.0 Kg of paper waste so handed over, a recycled file cover can be issued to the offices to promote such practices for the conservation of environment and motivation as well as participation in the "Waste Paper Recycling Scheme". MC may also explore to gain credits in lieu of such practice. In the initial stage this scheme may be started at the Head Offices, Secretariat, School, Colleges and other Directorates falling in the jurisdiction of MC Shimla and then can be promoted with wider publicity. XXIX. Biodegradable hoarding flex: MC Shimla is also in the process for adopting digital hoardings and replacement of flex hoardings with the material which is biodegradable. XXX. Night Sweepings: MC Shimla has started the night sweeping in many commercial areas. Efforts shall be made to sweep all the commercial areas in the night, helping to upgrade the sanitation condition in the town.

XXXI. Further more actions shall be initiated to fully implement the provisions of Solid Waste Management Rules, 2016, PWM Rules, 2016 and other related Rules for making Shimla a Model City.

6. Having gone through the compliance so far made by the various stakeholders, we are of the considered opinion that some of the directions as were passed on 23.03.2024, need to be elaborated and some of these need to be further clarified.

Accordingly, we proceed to do so.

7. In para-2 of the order, we find that the Himachal Pradesh State Pollution Control Board (HPSPCB), has referred to the meeting held on 20.04.2024 under the Chairmanship of the Member Secretary, HPSPCB, wherein a decision was taken not to issue Renewal of the Consent to operate to entities unless .

they submit application on the centralized portal for Extended Producers Responsibility (EPR) registration.

This itself is not a sufficient solution given the fact that such renewals may take place after 5 to 15 years for some entities.

Accordingly, we deem it appropriate to direct HPSPCB to send notices and thereupon implement penalties against the defaulting entities, who failed to get themselves registered and not wait till the time the applications for renewal of consent to operate will be submitted by these entities.

8. We find from the record that some of the Waste Management Agencies (WMAs) despite various directions issued in the meeting held with H.P State Pollution Control Board on 26.09.2023, 29.02.2024, 01.03.2024 and 20.04.2024 have not yet submitted the information as was directed in para-

2 (vi) of the order. They are directed to furnish the same latest by 07.06.2024, failing which apart from any other action, this Court would be constrained to initiate contempt proceedings against these WMAs. A copy of this order shall be sent by the HPSPCB to all the WMAs, through email, WhatsApp, fax etc.

9. In addition to the directions that have already been passed in para 2 (vii), we deem it appropriate to further direct all the Urban Local Bodies (ULBs) to ensure that the recycled plastic waste is stored in the shed(s) with proper partitions and .

further ensure that the same is channelized to registered Plastic Waste Processors (PWPs). We also need to clarify that the cement plant under the Corporate Social responsibility are to provide free transportation of waste.

10. In para-2 (viii), it is necessary and required to ensure that all r Producers, Importers and Brand Owners (PIBOs) from outside the State would comply with the directions that have been passed by this Court from time to time and to implement the same and it shall be the responsibility of the PIBOs to ensure compliance of such directions and point out the failure, if any.

11. Even though the Municipal Corporation, Shimla has framed action plan for making Shimla Model Town, but we find that the action plan barely deals with the issues that arise and emanate from some dwellings, housings, specially dharas & Jhuggi-jhopris etc., which though have been provided electricity or water connections but have been left-out from door-to-door garbage collection scheme, these would be contributing to create garbage hot-spots.

Therefore, the Municipal Corporation, Shimla is directed to identify such dwellings and include them in the action plan for garbage collection. Those dwellings (dharas, Jhuggi-jhopris, and other housings/ structures) which have obtained electricity and water connections, but have not .

generated garbage ID, are directed to get the garbage ID before the next date of hearing. In addition to the above, it shall also be the duty of the Municipal Corporation, Shimla and also the HPSEB as well as SJVNL to jointly implement this part of the order, so as to ensure that 100% of the dwellers of Shimla who have water and electricity connections must also have a garbage ID.

12. Though, detailed directions have been passed in paras 10 and 11 of the previous order regarding imparting of training to councilors, however, we need to clarify that training initially be started from MC, Shimla and thereafter M.C. Shimla in turn, would impart training to Councilors and Ward Members of other cities/towns of the State.

13. Detailed directions regarding availability of land for solid waste management sites etc. have been given in paras 14 and 15 of the previous order. In addition thereto, we deem it appropriate to direct all the Deputy Commissioners and Magistrates, who have been made responsible under Rule 12 of SWM Rules of 2016, to monitor the activities of allocation of land every 15 days.

14. We have noticed that directions issued in paras 20 and 21 of the previous order regarding 'solid waste management charge', have been misconstrued in a manner as if such directions have been issued by the Court of its own. The .

respondents have failed to take note of para-19 of the order, wherein the Rule 20 of SWM Rules of 2016 has been quoted, and it is only thereafter that the directions as contained in paras 20 and 21 have been made on the basis of what is contained in Rule 20(e) of the Rules, which is a special provision for hilly areas. r

15. In addition to what is contained in para 23 (vi) of previous order, we deem it appropriate to direct BBND and JBR to remove the Legacy waste from the Kenduwal Site as it poses significant threat to River Sirsa and human habitation living less than 100 meters from the site. Such waste be removed as expeditiously as possible, preferably before the onset of monsoon. The respondents shall also create a buffer zone and shall not block the access of the petitioner.

16. In addition to the directions already contained in para 23(xi), we direct the Municipal Corporation, Shimla to mention the penalties on the signboards so as to create deterrence for littering. These signboards would be placed on all the hotspots and areas where waste is thrown. In addition to the town, such signboards shall be put in the areas where the waste is thrown into streams/nallahs/hill-sides etc.

17. In addition to the directions contained in paras-25, 26 & 27 with regard to flex, we deem it appropriate to direct the Chief Secretary to the Government of Himachal Pradesh for .

considering the desirability of framing rules with regard to:-

- (i) thickness;
- (ii) the time period for which the flex can be put on location;
- (iii) the specific authorization to be put on the flex

regarding the location as also the time period for which such permission has been granted and;

(iv) the responsibility of the advertiser/user to remove and dispose of the flex in a scientific/ environmental friendly manner after the time period of permission is over alongwith the consequences on account of the default.

As for the present, we direct Municipal Corporation, Shimla to forthwith remove all flex banners/ advertisements that have been put without permission in Shimla town and cost thereof be recovered from the person/ authority/company/entity etc. who have placed such advertisements.

18. Before we close, it goes without saying that as usual it is only with the valuable assistance of Mr. Deven Khanna, Advocate, that we have been able to pass the directions on various occasions, including on 23.03.2024 and the directions issued today.

19. List on 20.06.2024.

(Tarlok Singh Chauhan)
Judge

(Sushil Kukreja)
Judge

May 09, 2024
(VH/Reena)